

The Priestly Fraternity of Saint Peter

A Foundation and Its Constitutional Question, 1988–2026

A source-first historical account

Traditional Priestly Institutes, TPI-02

Contents

1	A Body Made in Three Months, and What Was Made	1
2	2 July 1988: The Branch Point and the Declaration of the Founders	2
3	18–22 July 1988: The Act of Foundation and Rome’s Answer	3
4	18 October 1988: <i>Quia peculiare munus</i> , the Act Behind the Act	6
5	10 September and 18 October 1988: The Liturgical Decree and the Erection	7
6	1988–1998: Becoming an Institution	10
7	October 1998: Two Readings of a Tenth Anniversary	12
8	1999: Sixteen Priests, One Protocol, and a Suspended Chapter	13
9	2000: Rocca di Papa, the Letter of 29 June, and the Constitutional Settlement	15
10	2003: Definitive Constitutions, and What Article 8 Says	18
11	2007–2019: A Wider Law, and the End of the Commission	20
12	2021: <i>Traditionis custodes</i> and the Problem of Article 8	22
13	11 February 2022: The Decree, Read Word by Word	24
14	2023–2026: The Rescript, the Visitation, and a New Pontificate	26
15	Project Synthesis: What Has Actually Held the Fraternity in Being	28
16	The Present Situation, Stated as the Acts State It	30
17	Answering the Governing Question	31
18	Notes	32
A	Scope, Method, and Historical Coordinates	38
B	References	42
C	Generation Metadata	45

1 A Body Made in Three Months, and What Was Made

Between 2 July and 18 October 1988 a group of priests who had just left the Society of Saint Pius X acquired, from the Holy See, something the body they had left had not held since 1975: a canonical existence. The speed is the first thing anyone notices. Twelve or thirteen clerics signed a foundation act in a Cistercian abbey on 18 July; a Roman commission answered them four days later; a liturgical decree followed on 10 September; and on 18 October the Priestly Fraternity of Saint Peter was erected as a clerical society of apostolic life of pontifical right, with constitutions approved for three years and a superior general named for the same term.

The speed is also the first thing that misleads. It suggests a concession hurriedly granted in the aftermath of a rupture, and therefore a concession that a later pope could as hurriedly withdraw. That reading has been the common property of the Fraternity's critics on both flanks for nearly forty years: to the Society of Saint Pius X it proves that the foundation was a Roman device to divide the traditionalist movement; to the Fraternity's Roman critics it proves that the whole arrangement was transitional, a bridge for people shocked in 1988 and not a permanent feature of the Latin Church. Both readings treat what happened in 1988 as an act of favour.

This account asks a narrower and more answerable question. *What, exactly, did the acts of 1988 constitute, and what has kept that constitution in being through four subsequent changes in the Roman law of the liturgy?* The question can be answered from documents, because the governing acts exist and one of them—the act that matters most—was printed in *Acta Apostolicae Sedis*.

Six subordinate questions follow. Under what authority did a pontifical commission created for reconciliation erect an institute at all? What did the erection decree of 18 October 1988 actually grant, and in what terms? What happened in 1999 and 2000, when the Holy See told the Fraternity's superiors that they could not require of their own members the exclusive liturgical practice for which the Fraternity had been founded, and then removed a superior general and appointed his successor by decree? What did the definitive approval of the constitutions in 2003 settle? What did *Traditionis custodes* do to a body erected by the Pontifical Commission *Ecclesia Dei*, and what did the decree of 11 February 2022 do about it? And what is the Fraternity's position, in law, at this account's cutoff of 25 July 2026, with an apostolic visitation open and no published outcome?

Governing thesis

The Fraternity of Saint Peter was not given a privilege in 1988; it was given a constitution, and the two have different legal lives. The papal rescript *Quia peculiare munus* of 18 October 1988—printed in *Acta Apostolicae Sedis* 82 (1990) 533–534—gave the Pontifical Commission *Ecclesia Dei* the faculty to erect the Fraternity as a society of apostolic life of pontifical right “with those particular marks of which *Ecclesia Dei* n. 6 speaks,” and in the same breath made one thing—and only one thing—expressly provisional: the Commission's own exercise of the authority of the Holy See over such bodies, granted *donec aliter provideatur*, until otherwise provided. Every later Roman act that has moved the Fraternity has moved that provisional element and not the erection. The decommission of the Commission in 2019 cites n. 6 of the rescript by number; *Traditionis custodes* art. 6 transfers the institutes erected by the Commission to another dicastery; the apostolic visitation of 2024 is opened by that dicastery. The one occasion on which the Holy See reached past the supervisor and into the substance was 1999–2000, and what it refused then was not the Fraternity's liturgical patrimony but the attempt to make that patrimony a personal obligation binding each member against the universal law. The unresolved question at this account's cutoff is not whether the Fraternity exists but what the decree of 11 February 2022 is: a papal faculty granted *extra ordinem* and never promulgated in the official gazette, whose only reference to *Traditionis custodes* is a verb of advice.

The method is documentary and the hierarchy of witnesses is stated once here and applied throughout. Acts printed in *Acta Apostolicae Sedis* control what they record. Official texts published by the Holy See on its own site or in its press bulletin control acts not printed in the gazette. Where the only available text of a Roman act is one published by the Fraternity itself, or by a third party sympathetic or hostile, this account says so at the point of use, names the host, and does not let a party text establish a contested fact against or in the absence of an official one. Documents published by the Fraternity establish the Fraternity's own positions, self-description, internal events and self-reported numbers, and nothing else.

Three warnings about vocabulary belong at the front. “Society of apostolic life” is a canonical classification with a defined content in canons 731–746 of the 1983 Code; it is not a religious order, its members take no religious vows, and nothing in this account should be read as saying otherwise. “Pontifical right” means that the Apostolic See erected the body and that its internal government and discipline are immediately and exclusively subject to that

See under canon 593; it does not mean exemption from the diocesan bishop in public worship, the care of souls, or apostolic works. And “the 1962 books” means the Missal, Ritual, Pontifical and Roman Breviary in force in that year, named as such in the acts that grant them; “the traditional Latin Mass” is a looser expression that this account avoids wherever the identity of a particular book or faculty carries weight.

Finally, a boundary. The history of the Society of Saint Pius X is the subject of the companion volume in this series and is not retold here. This account touches that history at exactly one point—the branch of 1988—and again, glancingly, at the events of July 2026, where the question is only what the Fraternity did and did not say. No judgment is offered here on the canonical position of the Society of Saint Pius X; where the Fraternity’s own founders published such a judgment, it is reported as theirs.

2 2 July 1988: The Branch Point and the Declaration of the Founders

2.1 What the Fraternity was founded out of

The Priestly Fraternity of Saint Peter has one origin and it is not a diocese, a religious order, or a papal initiative. It is the collapse of an agreement. On 5 May 1988 Cardinal Joseph Ratzinger, Prefect of the Congregation for the Doctrine of the Faith, and Archbishop Marcel Lefebvre signed a protocol of agreement whose existence, date and signatories are established by two later papal acts.¹ Twenty-five days later the agreement failed; on 30 June 1988 Archbishop Lefebvre consecrated four bishops at Écône without a pontifical mandate; on 1 July the Prefect of the Congregation for Bishops declared the excommunications incurred; and on 2 July John Paul II issued *Ecclesia Dei*.

The protocol’s text has never been printed in *Acta Apostolicae Sedis* and this account has located no publication of it by the Holy See.² That matters here for a specific reason: the founders of the Fraternity did not merely admire the protocol, they invoked it as the legal basis of what they were doing, and the Holy See’s own answering acts of July, September and October 1988 track its provisions closely enough that the correspondence is worth setting out. In the text the Fraternity publishes, part II identifies “the most suitable canonical form” for the body then under negotiation as “a Society of apostolic life” under canons 731–746; provides that in its proper statutes “a certain exemption is foreseen with regard to the diocesan bishops . . . in matters having to do with public worship, the *cura animarum* . . . and other apostolic activities, keeping in mind canons 679–683”; and lists among “particular problems” to be resolved by decree or declaration the lifting of the suspension *a divinis*, dispensation from irregularities incurred by the ordinations, and a *sanatio in radice* of marriages celebrated by the Society’s priests without the required delegation.³

2.2 The declaration of 2 July 1988

On the day *Ecclesia Dei* appeared, fifteen men signed a short declaration at Paris, Munich and Vienna. The document the Fraternity publishes is a German original in English translation. It says, in its own words, that the undersigned, “members until now of the Fraternity of Saint Pius X, declare with profound regret over the illicit consecration of bishops on 30 June that they have remained within the Catholic Church as *pars sanior* of this same Fraternity, and that they have but one desire: to be able to live as a religious society in this Church and place themselves at her service under the authority, of course, of the Roman Pontiff, her supreme head.” It affirms “with great satisfaction” that the propositions the Church offered in the agreement of 5 May 1988 lay “the foundations for a fruitful and without doubt Catholic future for their society.” It asks the ecclesiastical authorities to establish them canonically as a society so that they may form future priests “in an authentic Catholic spirit” and, “as befits the venerable tradition of the Catholic Church,” celebrate divine worship “according to the guidelines of immemorial tradition.”⁴

Four features of that text govern everything that follows, and it is worth being exact about each.

1. **It is a declaration of intention, not a foundation.** It creates nothing. Its own closing sentence says the signatories will approach the Holy See “in order to clarify their ecclesiastical status as quickly as possible.”
2. **It claims continuity, not separation.** *Pars sanior* is a term of art from the law of elections and chapters, meaning the sounder part of a body, and its use is a claim to be the healthy remainder of the Society of Saint Pius X rather than a new departure from it. The Fraternity’s first superior general said the same thing

thirty-four years later in a memoir interview: “I do not consider myself, with my twelve confrères, a real founder: we only continued the Society of Saint Pius X in the Church.”⁵

3. **It is explicitly grounded on the protocol of 5 May.** The signatories do not ask for a new arrangement; they ask for the one that had already been negotiated and had just failed.
4. **It says nothing about exclusivity.** The declaration asks to be allowed to celebrate according to immemorial tradition. It does not say that its members will celebrate in no other way, and no Roman act of 1988 says so either. That silence is the seed of the crisis of 1999.

2.3 Who signed, and what the counts do and do not show

The declaration carries fifteen names. Seven bear a clerical style in the published text—P. Josef Bisig, P. Engelbert Recktenwald, Abbé Patrick du Faÿ de Choiset, P. Klaus Gorges, Abbé Gabriel Baumann, Abbé Denis Coiffet, and Walthard Zimmer, expressly “deacon.” The remaining eight names—Martin Lugmayer, Raymund Noll, Bernward Deneke, Dominic Schubert, Alexander Leonhart, Peter Miksch, Thomas Hauth, Dietmar Aust—carry no style at all. Secondary accounts routinely describe the foundation as the work of “twelve priests and twenty seminarians.” Neither figure can be got out of this document. The declaration does not state the status of the eight untitled signatories, and this account does not supply it: to call them seminarians would be to read a later summary back into a primary text.⁶

The Fraternity’s own presentation places all fifteen under the heading “Declaration of intention by the founders,” while its foundation act of 18 July carries a different and partly overlapping list. Any statement about “the founders” is therefore ambiguous unless the date is specified, and this account always specifies it.

Act or witness: Declaration of intention of the founders, 2 July 1988, in the Fraternity’s published English text of a German original.

What it establishes: That on the day *Ecclesia Dei* was issued, fifteen men who had belonged to the Society of Saint Pius X publicly dissociated themselves from the consecrations of 30 June, claimed to remain in the Catholic Church as the *pars sanior* of that Society, invoked the protocol of 5 May 1988, and petitioned for canonical erection with the immemorial liturgy.

Limit: A private declaration of intention published by its beneficiary. It has no juridical effect, it is a translation whose translator is unnamed, and it does not establish the clerical status of eight of its fifteen signatories.

2.4 The one thing *Ecclesia Dei* promised, and the one it did not

Ecclesia Dei of 2 July 1988 is not addressed to the future Fraternity, which did not exist. What it supplies is the frame. Its n. 6 a) institutes a commission whose task it will be “to collaborate with the bishops, with the Departments of the Roman Curia and with the circles concerned, for the purpose of facilitating full ecclesial communion of priests, seminarians, religious communities or individuals until now linked in various ways to the Fraternity founded by Mons. Lefebvre,” who wish to remain united to Peter’s successor in the Catholic Church “while preserving their spiritual and liturgical traditions, in the light of the Protocol signed on 5 May last by Cardinal Ratzinger and Mons. Lefebvre.” Its n. 6 c) adds that “respect must everywhere be shown for the feelings of all those who are attached to the Latin liturgical tradition, by a wide and generous application of the directives already issued some time ago by the Apostolic See for the use of the Roman Missal according to the typical edition of 1962.”⁷

Notice what n. 6 c) is and is not. It is an instruction to apply the indult of 1984 widely; it is not the creation of any institute, and it confers nothing on anyone by itself. The *motu proprio* contains no promise of a society of apostolic life, no promise of pontifical right, and no grant of the 1962 books to any community. All three of those came later, from a different instrument, and the difference is the subject of the next three sections.

3 18–22 July 1988: The Act of Foundation and Rome’s Answer

3.1 “It is for you to found”

Between the declaration of 2 July and the foundation of 18 July there were sixteen days of conversations in Rome about which the only narrative witness reached for this account is the memory of a participant, published by the

Fraternity in 2022. It should be read as such. In that account the founders presented their declaration of intention to Cardinals Augustin Mayer and Joseph Ratzinger; Monsignor Camille Perl, secretary of the new Commission, told them how to proceed in a sentence the memoir quotes: “It is for you to found. We shall approve what you submit to us.” The founders then met John Paul II briefly on 6 July, were given *celebret* letters signed by Ratzinger and Mayer on the same day, and held a founding chapter at which they drew up constitutions.⁸

That sentence, if it was said, describes the procedure the documents actually display. The Fraternity was not erected by a Roman initiative that the founders accepted. The founders constituted themselves; Rome recognized, then erected. The sequence matters because it is the sequence canon law requires for a society of apostolic life, and because it explains why the Fraternity’s constitutions were, from the beginning, its own text and not a Roman draft.

3.2 The act of 18 July 1988

At the Cistercian abbey of Hauterive, in the Swiss canton of Fribourg, on 18 July 1988, a group of clerics signed a French document of six sentences. It is worth quoting the first, because it is the whole foundation:

By this act the undersigned clerics found the Priestly Fraternity of Saint Peter as a clerical Society of Apostolic Life, in conformity with the dispositions of CIC (can. 731–46), taking into consideration the exemption foreseen in the Protocol of 5 May 1988 and the Motu proprio *Ecclesia Dei adflicta* of 2 July 1988.⁹

Three further clauses follow: the society “can associate lay brothers to its work”; its constitutions, which will specify its goals and spirituality, “are inspired by the approved statutes of the Priestly Society of Saint Pius X, the society reserving to itself the right to make any changes which it judges necessary by reason of present circumstances”; and the signatories “respectfully request the Holy See to approve the said society in the shortest delay possible in order that they may act effectively for the unity and the good of the Church.”

Read carefully, this is a remarkable document. It is a private act of clerics choosing a canonical figure for themselves out of the Code, and it names the figure by canon number. It anchors itself in the protocol that had failed eleven weeks earlier and in the motu proprio issued sixteen days earlier. And it says, without embarrassment, that the new body’s constitutions will be modelled on the statutes of the body its signatories had just left—the same statutes that Bishop Charrière had approved at Fribourg in 1970—with a reserved right of adaptation. The Fraternity of Saint Peter began, on its own account, as the Society of Saint Pius X’s rule under a different obedience.

The signature list contains twelve names, one of them a deacon: Josef Bisig, Ph. Tournyol du Clos, Gabriel Baumann, Christian Laffargue, Patrick du Faÿ de Choisinnet, Albert Jacquemin, J.-M. Gervais, Klaus Gorges, Engelbert Recktenwald, Christian Gouyaud, Franz Prosinger, and Walthard Zimmer, deacon. A thirteenth, Denis Coiffet, appears in square brackets with the Fraternity’s own note that he could not be present to sign and “is nevertheless considered a founding member.” A second note records that Father Gervais “left the proposed foundation before the decree of erection was issued on 18 October 1988.”¹⁰

Those two editorial notes explain a discrepancy that otherwise looks like carelessness in the literature. Counting from the signature list, eleven priests and a deacon signed; adding the absent Coiffet gives twelve priests; subtracting Gervais gives eleven priests present at the erection three months later. Any of those numbers can be defended, which is why this account uses none of them as a round figure and cites the document instead.

3.3 The Commission’s answer of 22 July

Four days after Hauterive, the Pontifical Commission *Ecclesia Dei* replied. Its letter—German original, published by the Fraternity in English—is signed by Cardinal Augustin Mayer, O.S.B., president, and Camille Perl, secretary, and addressed to Father Bisig. It records that the Commission “has been notified that 12 priests, former members of the Society of Saint Pius X, have resolved, on July 18th 1988 at the Abbey of Hauterive, Canton Fribourg, Switzerland, to found a new priestly fraternity for which they have chosen the name ‘The Priestly Fraternity of Saint Peter’” and that “the founding charter was delivered to us, with the request for recognition by the Holy See.” It then makes three statements of consequence:¹¹

1. the Commission “hereby states its readiness to erect the said Fraternity as a ‘Society of Apostolic Life’ according to the norms of canons 731–746 of the Code of Canon Law”;
2. it will, “after an initial review and the necessary recognition of the statutes *ad experimentum*, . . . accord at the desired time the status of an institute of pontifical right, according to the Protocol of 5th May 1988 and the said Motu proprio of July 2nd 1988”; and
3. “We recognize as valid your vote for Superior of the new Fraternity that occurred during the same foundational meeting.”

Each of these is carefully conditional. The Commission declares a readiness, not an erection. It attaches pontifical right to a future moment (“at the desired time”) and to a condition (review and recognition of the statutes *ad experimentum*). And it validates an election that the founders had already held—an act of confirmation, which presupposes that the founders’ own chapter had competence to elect.

The letter also contains a phrase that later became a small textual problem. It says that the Commission will accord “the status of an institute of pontifical right.” A society of apostolic life is not an institute; canon 731 places societies of apostolic life alongside, and outside, the institutes of consecrated life, and canon 732 applies to them the norms of canons 578–597 and 606 “with due regard for the nature of each society.” The looseness is harmless in a letter of intent. It recurs, thirty-four years later, in a papal decree, where it is less harmless; that is discussed below.

Act or witness: Letter of the Pontifical Commission *Ecclesia Dei* to Father Josef Bisig, 22 July 1988 (German original; the Fraternity’s published English text).

What it establishes: That within four days of the Hauterive act the Commission acknowledged twelve priests as founders, declared its readiness to erect the body as a society of apostolic life under canons 731–746, promised pontifical right after review of statutes approved *ad experimentum*, and confirmed the founders’ election of a superior.

Limit: A letter of a Roman commission, published by its addressee and never printed in *Acta Apostolicae Sedis*. It erects nothing, grants no liturgical faculty, and states a readiness conditioned on a review that had not yet occurred.

Document	Witness consulted	Evidentiary reach
Protocol of agreement, 5 May 1988	Not located in any official Holy See publication; English text published by the Fraternity; <i>La Documentation Catholique</i> 85 (1988) 734–736 cited in the literature but not reached	Existence, date and signatories are officially established by <i>Ecclesia Dei</i> 6 a). Its clauses are used here only as the founders’ own stated basis.
Declaration of intention of the founders, 2 July 1988	Fraternity’s English text of a German original; German quoted in <i>Prawo Kanoniczne</i> 69/1 (2026)	The founders’ stated purpose and their self-description as <i>pars sanior</i> . Not the status of eight signatories.
Act of Foundation, 18 July 1988	Fraternity’s English text of a French original; French quoted in <i>Prawo Kanoniczne</i> 69/1 (2026) from Levillain (2010)	The choice of canonical figure, the reliance on the protocol, the derivation of the constitutions from the SSPX statutes, and the signature list with its two editorial notes.
Declaration of the Pontifical Commission, 22 July 1988	Fraternity’s English text of a German original	Roman readiness to erect under cann. 731–746, the promise of pontifical right after review, and confirmation of the founders’ election.
Constitutions submitted in 1988	Not published; not located	Nothing. Only the 2003 excerpt discussed below is public.

4 18 October 1988: *Quia peculiare munus*, the Act Behind the Act

4.1 Where the power came from

A pontifical commission cannot erect an institute of pontifical right merely because it wishes to. Erection of a society of apostolic life of pontifical right is an act of the Apostolic See, and in 1988 the competent dicastery for such erections was the Congregation for Religious and Secular Institutes. *Ecclesia Dei* had created a commission for reconciliation, not a dicastery for consecrated life, and it had given that commission no erecting power at all. Something had to supply the defect.

That something is a rescript, and unlike almost everything else in this story it was printed in the official gazette. Under the rubric *Acta Commissionum, Acta Apostolicae Sedis* 82 (1990) 533–534 carries a *Rescriptum ex audientia Ss.mi* “by which special faculties are granted to the Cardinal President of the Pontifical Commission *Ecclesia Dei*, and made public,” known from its opening words as *Quia peculiare munus*. Its first sentence states the problem in the Roman manner: because the particular office committed to the Commission “requires certain acts which go beyond the customary order of law” (*qui consuetum ordinem iuris transcendunt*), its President humbly asked the Supreme Pontiff for certain faculties, to be exercised, where the case requires, after hearing the heads of the dicasteries concerned.¹²

Six faculties follow. They are worth setting out in full, because between them they contain the whole later history of the *Ecclesia Dei* communities:

1. to grant to all who ask for it the use of the Roman Missal according to the typical edition in force in 1962, “and indeed according to the norms already proposed by the Cardinalatial commission *ad hoc ipsum instituta* in December 1986,” the diocesan bishop being first informed;
2. (a) to dispense, according to the norm of *Ecclesia Dei*, from the irregularities listed in canon 1044 §1, nn. 1 and 2; (b) to convalidate in the root marriages null for want of the form required by canon 1108, celebrated before the same priests;
3. (a) to erect “the Priestly Fraternity of Saint Peter” as a clerical society of apostolic life of pontifical right, “those particular marks being preserved of which the Apostolic Letter *Ecclesia Dei*, n. 6 a, speaks,” and to approve the same society’s constitutions; (b) to erect the Seminary of the Fraternity of Saint Peter at Wigratzbad in the diocese of Augsburg, with the prior consent of the diocesan bishop;
4. to erect canonically, as institutes of consecrated life or as societies of apostolic life, communities which already actually exist and which are bound to the antecedent liturgical and disciplinary forms of the Latin tradition, after hearing the Prefect of the Congregation for Religious and Secular Institutes;
5. to erect associations of the faithful of the same mind which, after suitable preparation and probation and the usual procedure, are to become institutes of consecrated life or societies of apostolic life;
6. “to exercise the authority of the Holy See over the same Societies and Associations, *donec aliter provideatur*”—until otherwise provided.

The closing formula records that the Supreme Pontiff, in the audience granted to the undersigned Cardinal President on 18 October 1988, graciously deigned to grant the faculties as above and ordered them to be communicated to those concerned.¹³

4.2 Four things this act settles

First, the Fraternity is named in a papal grant, by name, before it was erected. Faculty 3 a) does not authorize the Commission to erect societies in general and leave the identity to its discretion; it authorizes the erection of a body already identified. Whatever else the foundation of 1988 was, it was not an anonymous exercise of a general power.

Second, the “particular marks” clause is a papal, not a commissional, qualification. The Commission was to erect the Fraternity *illis servatis notis peculiaribus, de quibus in Litteris Apostolicis “Ecclesia Dei”, n. 6, a*—that is, with the preservation of the spiritual and liturgical traditions of those the *motu proprio* had in view. The liturgical patrimony of the Fraternity is therefore not a concession appended to its erection; it is a condition written into the papal faculty

under which the erection was possible at all. That is a different legal object from an indult, and the difference became the whole substance of the argument of 2000.

Third, the seminary is in the same instrument as the society. Faculty 3 b) erects a house of formation at a named place in a named diocese with the diocesan bishop's prior consent. A society of apostolic life that could not form its own clergy would have been a very different thing; the rescript treats formation as constitutive.

Fourth—and this is the hinge of the entire subsequent history—only faculty 6 carries a temporal qualification. The Commission's exercise of the authority of the Holy See over the bodies it erects lasts *donec aliter provideatur*. Faculties 3 a) and 3 b) carry no such clause, because an erection once made does not need one: a juridic person, once constituted, exists until it is suppressed, merged, or extinguished by the law. What is expressly provisional in 1988 is the supervising organ. What is not expressly provisional is the body supervised.

4.3 The correspondence with the protocol

Set faculty 2 beside part II, n. 6 of the protocol of 5 May 1988 as the Fraternity publishes it. The protocol listed, among the “particular problems” to be settled “by decree or declaration,” the lifting of the suspension *a divinis* on Archbishop Lefebvre, dispensation from “the irregularities incurred by the fact of the ordinations,” and a *sanatio in radice*, “at least *ad cautelam*,” of the marriages already celebrated by the Society's priests “without the required delegation.” Faculty 2 of the rescript grants the Commission power to do the second and the third of those things, by the canons that carry them: canon 1044 § 1, nn. 1 and 2 for the irregularities, canon 1108 for the defect of form.¹⁴

The first item on the protocol's list—the lifting of the suspension *a divinis*—is precisely the one that has no counterpart in the rescript, and could have none, since its beneficiary had by then been declared excommunicate. The relationship between the two documents is therefore neither identity nor coincidence: the papal faculties of October 1988 are, in their remedial part, the protocol's remedies transplanted into a body that had accepted them.

4.4 An eighteen-month delay, and what it does not mean

The rescript is dated by audience to 18 October 1988. It appears in the gazette in the fascicle of 3 May 1990. That gap of about eighteen months is ordinary for acts of commissions and is not, in itself, evidence of anything; *Acta Apostolicae Sedis* publishes such material when the compiling dicastery submits it. The gap does mean that for the Fraternity's first year and a half the public evidence of its erection was a decree circulating on paper. It also means that the definitive public witness to the Commission's authority over the Fraternity is a text that any canonist could consult from 1990 onward—and that the Holy See itself consulted, and cited by number, in 2019.

Act or witness: *Quia peculiare munus*, rescript from the audience of 18 October 1988, *Acta Apostolicae Sedis* 82 (1990) 533–534.

What it establishes: That John Paul II personally granted the Cardinal President of the Pontifical Commission *Ecclesia Dei* six faculties transcending the ordinary order of law, among them the faculty to erect the Priestly Fraternity of Saint Peter by name as a clerical society of apostolic life of pontifical right with the marks of *Ecclesia Dei* 6 a, to approve its constitutions, to erect its seminary at Wigratzbad with the bishop of Augsburg's prior consent, and to exercise the authority of the Holy See over such societies *donec aliter provideatur*.

Limit: A grant of faculties to an organ, published in the gazette. It is not itself the erection, does not state the terms of any constitutions, and does not regulate the internal life of any society. Its temporal clause qualifies faculty 6 alone.

5 10 September and 18 October 1988: The Liturgical Decree and the Erection

5.1 The decree of 10 September: a faculty, and its geography

Six weeks before the erection, the Commission issued a short Latin decree granting the liturgical faculty. Its operative sentence is one period, and every clause of it recurs, verbatim in substance, in the papal decree of 2022:

In virtue of the faculty granted to it by the Supreme Pontiff John Paul II, the Pontifical Commission *Ecclesia Dei* concedes to that which is called the “Fraternity of St. Peter”, founded July 18, 1988 and declared of “Pontifical Right” by the Holy See, the faculty of celebrating Mass, and carrying out the rites of the sacraments and other sacred acts, as well as fulfilling the Divine Office according to the typical edition of the liturgical books in force in the year 1962; namely the Missal, Ritual, Pontifical, and Roman Breviary. This faculty may be used in their own churches or oratories; otherwise it may only be used with the consent of the Ordinary of the place, except for the celebration of private Masses.¹⁵

Four observations, each of which matters later.

The grant is of four books, not of a Mass. Missal, Ritual, Pontifical and Breviary: the sacramental rites, the pontifical rites including ordination, and the Office, as well as Mass. In 2021 the Congregation for Divine Worship would answer, of the general law, that the diocesan bishop may permit the 1952 Ritual but not the Pontifical. The Fraternity’s grant of 1988 is wider than what the general law of 2021 allows a bishop to permit, and the difference is the substance of the Fraternity’s later difficulties.

The grant is territorial in a precise way. In its own churches and oratories the faculty operates by itself; elsewhere it requires the consent of the local Ordinary, save for private Masses. Nothing in the decree exempts the Fraternity from the diocesan bishop outside its own places, and nothing in it makes the faculty depend on him inside them.

The decree calls the body “of pontifical right” five weeks before the erection decree. This is a genuine oddity of the file. The decree of 10 September describes the Fraternity as “founded July 18, 1988 and declared of ‘Pontifical Right’ by the Holy See”; the express erection in pontifical right is dated 18 October. Either an earlier declaration existed and has not been published, or the September decree anticipates the October one, or the phrase is doing loose duty for the readiness declared on 22 July. No document reached for this account resolves it, and the resolution is not supplied here.¹⁶

The decree is a faculty, and faculties are held by their grantor’s title. That is not a criticism; it is the ordinary structure of such grants, and it is exactly the structure that the papal decree of 11 February 2022 reproduces.

5.2 The decree of erection, 18 October 1988

The erection decree carries the Commission’s protocol number 234/88 and is signed by Mayer and Perl. Its Latin is preserved in the canonical literature and its English text is published by the Fraternity. It does five distinct things.¹⁷

One: it erects. “This Pontifical Commission *Ecclesia Dei*, in virtue of the special faculties granted to it by the Sovereign Pontiff, and graciously accepting the petition of the Reverend Father Josef Bisig, by this selfsame Decree erects the Priestly Fraternity of St. Peter as a clerical society of Apostolic Life with Pontifical Right, according to the prescribed norms of Canon Law and with all the legal consequences involved.” The Latin is *in societatem clericalem vitae apostolicae iuris pontificii . . . hoc Decreto iuxta omnes iuris effectus erigit*. Note the express reference back to the special faculties: the decree is an exercise of *Quia peculiare munus*.

Two: it states the purpose in the terms of the papal faculty. The Fraternity “proposes the sanctification of priests through the exercise of the pastoral ministry, particularly in conforming its life to the Most Holy Sacrifice of the Mass and by observing the liturgical and disciplinary traditions invoked by the Roman Pontiff in the Apostolic Letter *Ecclesia Dei* of 2 July 1988.” *Observantiam traditionum liturgicarum et disciplinarum a Romano Pontifice memoratarum*: the observance of those traditions is written into the object of the erection itself.

Three: it fixes the canonical furniture. The erection “brings with it the rights enumerated in Canon 611”—that is, the rights that follow from a diocesan bishop’s consent to the establishment of a house: to lead a life according to the institute’s proper character and purpose, to undertake works proper to it, and to have a church and exercise sacred ministries there, observing the law. The Fraternity “is regulated by the norms of the Code of Canon Law, the prescriptions of this Decree, its own Constitutions and other appropriate laws.”

Four: it grants the books again, and to a wider class. “The members of the Priestly Fraternity of St. Peter, as well as other priests who are guests in houses of the Fraternity or who exercise the sacred ministry in their churches, are conceded the use of the liturgical books in force in 1962.” The Latin is *usus conceditur librorum liturgicorum iam anno 1962 vim habentium*. This is broader than the September decree: it reaches guests and visiting ministers, not only members.

Five: it binds the Fraternity into the diocesan structure and reserves its supervision. Members are “with particular diligence to seek communion with the bishop and diocesan priests according to Canons 679–83”; in pastoral ministry “the prescriptions of the law are to be observed, particularly in what concerns the valid and licit celebration of the Sacraments of Penance and Marriage, as well as what is laid down in canon 535 concerning the transcription of these events in the parish registers.” And, in the clause that reproduces faculty 6 of the papal rescript: “the Priestly Fraternity of St. Peter is under the authority of the Sovereign Pontiff as transmitted to this Pontifical Commission for all that concerns it, until otherwise provided for”—*quoad omnes effectus subicitur auctoritati Sedis Apostolicae ope huius Pontificiae Commissionis, donec aliter provideatur.*

Finally, the decree approves the constitutions for three years and names Father Bisig superior general for three years, and records that John Paul II, in an audience granted to the undersigned Cardinal President on 18 October 1988, ratified the decree and ordered its publication.

5.3 What kind of body this is

It is worth stating plainly, because the term is regularly misused. A society of apostolic life is not an institute of consecrated life. Canon 731 § 1 defines such societies as those whose members, without religious vows, pursue the apostolic purpose proper to the society and, leading a life in common according to their proper manner of life, strive for the perfection of charity through the observance of the constitutions.¹⁸ Canon 732 applies to societies of apostolic life what canons 578–597 and 606 establish for institutes of consecrated life, “with due regard for the nature of each society”—which is how canon 586 on the just autonomy of life, canon 587 on the fundamental code, and canon 593 on the immediate subjection of bodies of pontifical right to the Apostolic See in internal governance and discipline reach the Fraternity at all.

Three consequences follow that the reader should carry through the rest of this account.

- **The members take no religious vows.** They are bound by the common obligations of clerics and by the bond their own constitutions establish. Nothing about the Fraternity is monastic.
- **“Pontifical right” is a statement about the supervising authority, not about exemption.** Canon 593 subjects such a body immediately and exclusively to the Apostolic See in internal governance and discipline. Canon 738 § 2 subjects the members to the diocesan bishop “in those matters which regard public worship, the care of souls, and other works of the apostolate, with attention to cann. 679–683”—which is exactly the block of canons the erection decree names.
- **A house requires the diocesan bishop’s previous written consent** (canon 733 § 1), and once erected it carries the canon 611 rights the decree expressly invokes. The Fraternity’s growth is therefore, at every step, a series of episcopal consents, not a series of Roman grants.
- **Clerics are incardinated in the society itself** unless the constitutions provide otherwise (canon 736 § 1). The Fraternity’s published statistics distinguish incardinated members from those incorporated *ad annum*, postulants and associates, and this account keeps those categories distinct wherever it reports numbers.

Act or witness: Decree of erection, Pontifical Commission *Ecclesia Dei*, 18 October 1988, Prot. N. 234/88, ratified in the papal audience of the same day.

What it establishes: That the Fraternity was erected as a clerical society of apostolic life of pontifical right in exercise of the special faculties of *Quia peculiare munus*; that observance of the liturgical and disciplinary traditions named in *Ecclesia Dei* entered the object of the erection; that the use of the 1962 books was conceded to members and to guests and ministers in their churches; that canons 611, 535 and 679–683 were expressly applied; that the constitutions were approved for three years and Father Bisig named superior general for three years; and that the Fraternity was subjected to the authority of the Apostolic See through the Commission *donec aliter provideatur*.

Limit: A decree of a commission, never printed in the official gazette, known in Latin only through a canonical periodical not reached for this account and in English only through the beneficiary’s own publication. It settles the canonical figure and the liturgical grant; it does not state what the constitutions contained, and it does not say that the 1962 books are the members’ only permitted books.

6 1988–1998: Becoming an Institution

6.1 Wigratzbad: a seminary before a society

The papal rescript of 18 October 1988 authorized the erection of a seminary at Wigratzbad, in the township of Opfenbach in the diocese of Augsburg, “with the prior consent of the diocesan bishop.” The Fraternity’s own history of the house records that the consent came first: “As early as August, 1988, Bishop Josef Stimpfle of Augsburg announced that he would accept a canonical establishment in Wigratzbad. In November thirty-one seminarians commenced their studies.”¹⁹

The site was not chosen at random. Wigratzbad was already a Marian pilgrimage centre associated with Antonie Rädler and, in the Fraternity’s telling, a place where the idea of an international seminary had been discussed years before 1988. Until autumn 2000 the seminary was housed in the pilgrimage centre itself; a purpose-built seminary opened at the start of the 2000 term and was solemnly blessed by Cardinal Darío Castrillón Hoyos on 2 December 2000. The Fraternity records that from the beginning the studies were divided into French and German language groups, with seminarians of other languages choosing one of the two.²⁰

Two things follow from the shape of that first decade. The Fraternity was an international body before it was a large one, because a single house of formation served several language groups; and its centre of gravity was formation rather than parochial ministry, which is what its own constitutions later say its principal object is.

6.2 Elmhurst, then Denton

The second seminary has a two-stage history that the Fraternity’s own account preserves and that is easily lost in summary. In 1994 Bishop James C. Timlin of Scranton, Pennsylvania approved the establishment of a seminary in a former retreat centre at Elmhurst, and that autumn the first seminarians began studies at Our Lady of Guadalupe Seminary. By 1998 the numbers had outgrown the site; Father Arnaud Devillers, then North American district superior, announced that “the new seminary will be located in the Diocese of Lincoln, Nebraska where we have been welcomed by Bishop Fabian W. Bruskewitz.” Ground was broken in October 1998; Bishop Bruskewitz blessed the cornerstone on 16 October 1999; and in autumn 2000 the new house at Denton, Nebraska received nearly fifty seminarians under its first rector, Father James Jackson. The seminary chapel of Saints Peter and Paul was consecrated by Bishop Bruskewitz on 3 March 2010 in the presence of Cardinal William Levada, then Prefect of the Congregation for the Doctrine of the Faith and President of the Commission *Ecclesia Dei*.²¹

The move from Scranton to Lincoln is worth a sentence of analysis. A society of apostolic life cannot open a house anywhere it likes: canon 733 §1 requires the previous written consent of the diocesan bishop. The Fraternity’s two seminaries therefore exist because three named bishops consented—Stimpfle at Augsburg, Timlin at Scranton and then Bruskewitz at Lincoln—and its whole apostolic network exists on the same terms. A body of pontifical right is not thereby free of bishops; it is a body whose houses each rest on an episcopal act.

6.3 The rite of ordination, and a rescript of 1996

One institutional fact of this period is easy to overlook and is canonically important. A society that forms its own clergy must present them for orders, and the erection decree had conceded the 1962 books, which include the Pontifical. The canonical literature records a further rescript of the Pontifical Commission of 24 March 1996, Prot. N. 64/96, by which the Fraternity could celebrate the rite of tonsure and of ordination according to the *Pontificale Romanum* of 1961/62.²² The point is not antiquarian. Twenty-five years later the Congregation for Divine Worship would answer that the diocesan bishop may not permit the pre-conciliar Pontifical at all. Whatever the Fraternity holds in that matter, it holds by a distinct title.

6.4 Growth, and what the numbers are

The Fraternity publishes annual statistics as of 1 November each year. They are self-reported; no independent census exists and none is attempted here. Taken as a self-report, they show a body that grew by about a third between 2017 and 2024 and whose seminary population never collapsed:

Document	Witness consulted	Evidentiary reach
1 November 2017	Fraternity statistics page	437 members, of whom 293 incardinated; 287 priests; 21 deacons; 129 non-deacon seminarians; average age 38.
1 November 2019	Fraternity statistics page	482 members, 317 incardinated; 320 priests; 17 deacons; 145 non-deacon seminarians; average age 38.
1 November 2021	Fraternity statistics page	526 members, 336 incardinated; 341 priests; 17 deacons; 168 non-deacon seminarians; average age 38.
1 November 2023	Fraternity statistics page	569 members, 364 incardinated; 368 priests; 22 deacons; 179 non-deacon seminarians; average age 39.
1 November 2024	Fraternity statistics page	583 members, 373 incardinated; 386 priests; 15 deacons; 182 non-deacon seminarians; average age 39.
1 November 2025	Fraternity statistics page	579 members, 394 incardinated; 387 priests (365 incardinated, 16 incorporated <i>ad annum</i> , 3 postulants, 3 associated); 30 deacons; 162 non-deacon seminarians; average age 39; 16 deceased members.

Three cautions travel with that table.²³ First, the categories are the Fraternity’s own and are not interchangeable: “member” includes seminarians, “incardinated” does not, and “priests” includes men incorporated *ad annum*, postulants and associates who are not incardinated. Second, the 2025 figure is the first fall in the series reported here, from 583 to 579, driven by a drop of twenty in non-deacon seminarians; a single year is not a trend and this account draws no conclusion from it. Third, membership is not the same as apostolic extent: the canonical literature reports 151 dioceses, 277 apostolates and 48 personal parishes at 2024, drawn from the Fraternity’s own *Ordo administrativus*.²⁴

6.5 Government, and one unresolved date

The Fraternity is governed by a superior general with a general council, elected by a general chapter, and is divided territorially. Its published succession of superiors general runs Josef Bisig (1988–2000), Arnaud Devillers (2000–2006), John Berg (2006–2018), Andrzej Komorowski (2018–2024), and John Berg again from 2024, elected on 9 July 2024 by the seventh ordinary general chapter, at which thirty-two capitulants were present.²⁵

The territorial history contains a discrepancy that this account does not resolve. The Fraternity’s communiqué of 27 May 2021 states that “following the decision of the 2018 General Chapter, the North American District (USA and Canada) will also be erected into a North American Province on July 1”; the canonical article of 2026 gives “the American Province, established in 2002.” A North American *district* plainly existed earlier still, since the Fraternity’s own seminary history calls Father Devillers “then North American District Superior” in 1998. Both statements cannot describe the same act, neither writer supplies the erecting instrument, and this account does not choose between them. What is established is that a province of that name existed at the cutoff and that the Fraternity dates its erection to 1 July 2021.²⁶

At the cutoff the Fraternity’s published organization chart shows a superior general (John Berg) with three assistants and two counsellors, a North American Province, a French Province, German-speaking and Oceania districts, and the two seminaries.²⁷

7 October 1998: Two Readings of a Tenth Anniversary

7.1 The occasion

In October 1998 the communities born of *Ecclesia Dei* made a pilgrimage to Rome for the motu proprio's tenth anniversary. Two texts from that week became, within eight months, the ammunition of an internal war inside the Fraternity of Saint Peter: an address of John Paul II on 26 October and a conference of Cardinal Ratzinger on 24 October. Neither was addressed to the Fraternity in particular; both were read by everybody as though they were.

7.2 What John Paul II said

The papal address was published in *L'Osservatore Romano* and has not been located by this account on the Holy See's own website or in *Acta Apostolicae Sedis*. The French wording is preserved in the canonical literature, and the two sentences that matter are these: the pope exhorts "all Catholics to make gestures of unity and to renew their adherence to the Church, so that legitimate diversity and different sensitivities, worthy of respect, do not separate them from one another but rather move them to proclaim the Gospel together"; and, "while confirming the well-foundedness of the liturgical reform willed by the Second Vatican Council and implemented by Pope Paul VI, the Church also gives a sign of understanding to persons 'attached to certain earlier liturgical and disciplinary forms' (Motu proprio *Ecclesia Dei*, n. 5). It is in this perspective that the Motu proprio *Ecclesia Dei* must be read and applied."²⁸

The interpretative clause is the sharp one. The pope does not say that the older forms are one lawful option beside another. He says that the motu proprio is to be read and applied *in the perspective* of a reform whose well-foundedness is confirmed, with the older forms as a sign of understanding to persons attached to them. A partisan of maximal liturgical autonomy and a partisan of eventual convergence can each find their case there, and within a year each did.

7.3 What Cardinal Ratzinger said

The Prefect of the Congregation for the Doctrine of the Faith spoke on 24 October. The Fraternity publishes an English text of a French original. The conference is unusually candid in both directions. On the side of the older liturgy: "The Council itself did not reform the liturgical books but rather ordered their revision"; "The authority of the Church can define and limit the use of rites in different historical situations. She never forbids them purely and simply"; "Nobody was ever scandalized that the Dominicans, often when present in parishes, did not celebrate like parish priests but rather had their own rite." On the other side, and in the same breath: "If one wishes to scorn these essential rules and to put aside the *normae generales* which are bound at numbers 34 to 36 of the Constitution *De Sacra Liturgia*, then one violates obedience to the Council!"; and "one has to admit that the celebration of the ancient liturgy was too lost in the realm of the individual and the private ... the communion between the priest and the faithful was lacking."²⁹

The conference ends with an appeal that reads, in hindsight, like an attempt to head off exactly what happened next: "Such fears and anxieties must stop! If the unity of the faith and the unicity of the mystery appear clearly in the two forms of celebration, this can only be a reason for all to rejoice and thank God."

7.4 Why two texts of encouragement became a *casus belli*

The theological content of these two texts is not the reason they matter to this history. What matters is the use to which they were put. Within eight months a group of the Fraternity's own priests would cite the papal address and the cardinal's conference, in a formal recourse to the Pontifical Commission, as evidence that Rome desired the 1962 rite to be adapted to the wishes of the conciliar fathers and that the Fraternity's refusal of any such development constituted disobedience to the Council. The same texts were read by the Fraternity's superiors as a confirmation that the older forms have a settled and respected place. Both readings are possible from the words; that is precisely the difficulty of building an institute on a document written to reconcile.

Act or witness: John Paul II, address of 26 October 1998 (*L'Osservatore Romano*, as quoted in the canonical literature); Cardinal Joseph Ratzinger, conference of 24 October 1998 (French original; the Fraternity's published English text).

What it establishes: That at the tenth anniversary of *Ecclesia Dei* the Holy See publicly confirmed both the well-foundedness of the liturgical reform and the legitimacy of the older forms as a sign of understanding, and that the Prefect of the doctrinal congregation defended the older rite's place while insisting on the general norms of *Sacrosanctum Concilium* 34–36 and criticizing the pre-conciliar practice of private celebration.

Limit: Neither text is a juridical act; neither is addressed to the Fraternity as such; the papal address is used from a quotation in a canonical article and the cardinal's conference from a translation published by the Fraternity. Their significance here is that both parties to the 1999 crisis cited them.

8 1999: Sixteen Priests, One Protocol, and a Suspended Chapter

8.1 A warning about the evidence in this section and the next

For the years 1999 and 2000 the documents that decide the question are Roman acts addressed to the Fraternity: a letter of the Congregation for Divine Worship of 3 July 1999 bearing protocol number 1411/99, a letter of the Pontifical Commission *Ecclesia Dei* of 29 June 2000 numbered 748/2000, and a decree of the same Commission of 12 October 2000 numbered 823/2000. None of the three was published by the Holy See. None is in *Acta Apostolicae Sedis*, on vatican.va, or in the Holy See Press Office bulletin, and none was located in any official publication.³⁰

What exists instead is a set of French, Italian and German texts of those acts published between 1999 and 2001 on partisan websites—one an archive of a French lay traditionalist association, one an Italian traditionalist site—and, in 2026, cited from the same Italian site, with the German original, by a peer-reviewed canon-law article whose author is a priest of the Fraternity. That convergence is worth something: it establishes that the texts circulating on those archives are the texts canonists work from. It does not make them official, and this account never treats them as official. Where a clause of one of these acts carries weight below, the text is named, the language is named, and the host is named.

8.2 The recourse of 29 June 1999

The Fraternity's constitutions, approved *ad experimentum* in 1988, provided for a general chapter in 2000. In 1999 the superior general obtained a dispensation to bring part of that chapter forward, so that the definitive text of the constitutions could be prepared a year early; elections were held in the spring to choose the capitulants.

The elections returned, on the account of the losing side, a body composed entirely of priests opposed to any adaptation of the 1962 rite. On 29 June 1999—the feast of Saints Peter and Paul—sixteen priests of the Fraternity addressed a letter to Cardinal Angelo Felici, president of the Pontifical Commission *Ecclesia Dei*, over the head of their own superior general. Its first paragraph concedes the gravity of what they were doing: “In addressing ourselves directly to you without passing through the authority of our Superior General, we are conscious of performing a grave act, contrary to clerical habits.”³¹

The letter's grievances are specific and worth reporting exactly, because the Roman answer tracks them. It complains that seminarians refuse with impunity to serve the Masses of visiting professors who celebrate the *Novus Ordo Missae*; that congregational singing of the Our Father, admitted a few years earlier, is now strictly forbidden; that a liturgical directory adopted in 1995 with an appendix of adaptations for France was never presented to seminarians; that concelebration with the bishop “in whatever circumstances” is treated as an attack on the Fraternity's unity and a grave delict, that members who concelebrated have been sanctioned, and that before tonsure candidates must now undertake not to concelebrate under pain of exclusion. It alleges a dysfunction in the superior general's exercise of power, and it reports that when a bishop offered territorial parishes subject to some indispensable local liturgical adjustments, the offer was refused “by fidelity to the Constitutions.”

Its diagnosis is the sentence that would be quoted against the Fraternity for years: that this liturgical hardening is not really a liturgical or even a doctrinal position but “rather psychological, even sociological,” and that it repeats step by step the slide toward a spirit of separatism that led the Society of Saint Pius X to refuse the Roman offers in 1988. And it asks for three things: postponement of the chapter set for that summer; the sending of a canonical visitor for

the whole Fraternity; and “the urgent appointment of an apostolic administrator to take in hand the destiny of our Society.”

8.3 Protocol 1411/99, 3 July 1999

Four days later the Congregation for Divine Worship and the Discipline of the Sacraments issued a document headed “Official responses,” protocol 1411/99, signed by Cardinal Jorge Medina Estévez, prefect, and Archbishop Francesco Pio Tamburrino, secretary. It answers three questions put by an unnamed priest of a community enjoying the faculty of the older rite. Its premise is stated in its own preamble: because the use of the pre-conciliar Missal is conceded only by indult, the liturgical right in favour of the common Roman rite remains, and the Missal in force is the one promulgated after the Council.

The three answers, in the French text available to this account, are these:³²

1. A priest of such a community *may* freely use the Missal of Paul VI when he celebrates for the good of the faithful, even occasionally, in a parish where that Missal is used; indeed he *must* celebrate according to the post-conciliar Missal if the celebration takes place in a community that uses the current Roman rite, so that no astonishment or unease arises among the faithful.
2. Superiors of such communities, “of whatever dignity,” *may not* forbid the priests of their institutes the use of the post-conciliar Missal when they celebrate for the good of the faithful in a community where that Missal is used, because the indult is granted in the interest of the faithful attached to the older rite and cannot be imposed on communities that celebrate otherwise—over which, moreover, such superiors have no authority.
3. A priest of such an institute *may* concelebrate a Mass in the current Roman rite; a superior or ordinary “neither can nor should” forbid him to concelebrate; on the contrary it is praiseworthy that he concelebrate freely, above all at the Mass of Holy Thursday over which the diocesan bishop presides, the sign of communion at the chrism Mass being so strong that it should never be renounced save for a grave reason.

The legal architecture of that answer deserves attention, because it is the architecture that failed a year later. The responses treat the older books as an *indult*—a concession from the common law—and therefore reason that the common law survives underneath, unimpaired, as a right personal to each priest. On that premise the conclusion is inescapable: what the law gives to every Latin priest, no superior below the Roman Pontiff can take away.

8.4 The Commission’s measures of 13 July 1999

Ten days later the Pontifical Commission acted on the sixteen priests’ first request and part of the third. According to the contemporary account in the same archive, the Commission cancelled the general chapter session convoked for August 1999; convoked instead an assembly of all members incardinated in the Fraternity for the autumn; and restricted the superior general to ordinary business, forbidding any change that was not strictly necessary. That last measure had a practical bite the archive notes: it protected the sixteen signatories from being transferred.³³

8.5 The superior general’s circular, 30 August 1999

Father Bisig wrote to the members on 30 August 1999. The letter is available to this account in a French text published, with evident polemical intent, by the French district of the Society of Saint Pius X. It is nevertheless the closest thing to a first-person Roman-facing account of the crisis from the Fraternity’s side, and its restraint is itself evidence.

He names the two events: “the Letter of 3 July 1999 (protocol 1411/99) of the Congregation for Divine Worship, which presents itself as a response to certain questions concerning the use of the *Novus Ordo Missae* by priests attached to the traditional Roman liturgy,” and “the cancellation by the Ecclesia Dei Commission of the session of the Fraternity’s general Chapter, which was to meet in August,” replaced by a plenary meeting of incardinated members in November. He states that a small group of members lodged an official recourse with the Commission on 29 June “without my knowledge.” He states that he has lodged a recourse of his own within the prescribed time, and gives his reason in a sentence that states the whole constitutional question of this history: “It is important that the

Fraternity rapidly recover the exercise of the legislative and executive rights attached to its status as an Institute of pontifical right.”³⁴

He also states his reasons for having refused the pressures to concelebrate: “fidelity to our proper mission in the Church, the concern to avoid troubles and divisions among our faithful and our members, the consolidation and identity of our apostolate, the unity of life and discipline according to our Constitutions.” And he offers a characterization of the Fraternity’s purpose that has some force: “our particular mission in the service of the hierarchy and of the faithful is today more qualitative than quantitative”—a witness to the immemorial liturgical tradition, “sometimes to the detriment of the expansion of our apostolate.”

8.6 The joint supplication of 23 July, and Rome’s public line

On 23 July 1999 Father Bisig and Father Louis-Marie de Blignières, prior general of the Fraternity of Saint Vincent Ferrer, jointly petitioned the Holy See not to publish the responses of 3 July, on three grounds: that they respect neither the proper character of the institutes nor the jurisdiction of their superiors; that they open the way to a habitual biritualism; and that they make the government of the institutes impossible. The archive that publishes the supplication records that as of 23 September 1999 it had received no answer.³⁵

Publicly, the Commission’s line was that nothing extraordinary had occurred. A text distributed by Monsignor Perl at a meeting of Una Voce International in November 1999, and circulated thereafter, states that the Commission “has never had the intention of modifying” the Fraternity’s statutes; that documents which should have remained strictly confidential had been published, to the Fraternity’s great harm; that several priests had exercised “their right to appeal to the Holy See—a right which every faithful Catholic possesses”; and that those who call the resulting measures an abuse of power “do not understand the true juridical situation: namely that the Commission exercises the full authority of the Holy See over the aforementioned Fraternity.”³⁶

That last sentence is the pivot. Whatever else was disputed, both sides agreed that the Pontifical Commission exercised the authority of the Holy See over the Fraternity. The dispute was about what that authority could reach.

Act or witness: Congregation for Divine Worship, “Official responses,” Prot. 1411/99, 3 July 1999 (French text on a partisan archive; official locus *Notitiae* 35 [1999] 307–309, not reached).

What it establishes: That in July 1999 the competent liturgical dicastery answered, on the premise that the 1962 books are held by indult, that a priest of an *Ecclesia Dei* community may and in some circumstances must celebrate with the Missal of Paul VI; that his superior may not forbid him to do so or to concelebrate; and that concelebration at the chrism Mass is praiseworthy.

Limit: A responsum of a congregation, reached only in an unofficial French rendering hosted by an interested party. It concerns liturgical law and personal rights; it does not purport to interpret the Fraternity’s constitutions, name the Fraternity, or alter its erection.

9 2000: Rocca di Papa, the Letter of 29 June, and the Constitutional Settlement

9.1 The compromise of February

The plenary assembly the Commission had ordered met in February 2000. The Fraternity’s own press communiqué, signed by Father Bisig and dated Rome, 12 February 2000, says that “the Priestly Fraternity of Saint Peter held a general assembly at Rome from 8 to 11 February 2000,” convoked by the Holy See “because of certain internal difficulties”; that after four days of discussion and reflection “an accord was found as a basis of reconciliation which will permit a greater unity”; that the priests and deacons present committed themselves to pardon failures in charity and to remain faithful to the ideal of the Fraternity and of its founders; that a committee named by the superior general would look for solutions and report to the general chapter meeting that summer; and—the operative sentence—“As was indicated in the letter of 13 July 1999 of the Pontifical Commission *Ecclesia Dei*, the Superior general therefore recovers the full faculties which the law of the Church grants him.”³⁷

What the accord contained is reported by the archive rather than by the communiqué: that the members “resolved explicitly to renounce the use of the right to celebrate Mass according to the new *Ordo Missae*,” while priests who

wished to might concelebrate at the chrisom Mass with their bishop without obligation. Whatever its exact wording, the superiors then asked the Pontifical Commission to approve it and to make it a special law for the Fraternity—a request whose existence is established by the Roman letter that refused it.³⁸

That request is the legal heart of the whole affair. The Fraternity’s superiors were not asking Rome to deny that its priests possessed a right under the universal law. They were asking Rome to convert a collective renunciation of the exercise of that right into a norm of the institute’s own particular law—the classic mechanism by which a society’s constitutions limit what its members may do.

9.2 The letter of 29 June 2000

The general chapter met at Wigratzbad from 4 to 14 July 2000. On its second day Monsignor Perl read to it a letter from Cardinal Darío Castrillón Hoyos, who had become president of the Commission that April. The letter is dated 29 June 2000 and carries the number 748/2000. It was written in German; the German text was published in July 2000 and has circulated since, and is cited in the canonical literature from an Italian site that carries the German alongside Italian and French renderings.³⁹

The letter’s structure is: an exordium on fraternal communion; a statement that the writer has studied the institute’s files since his appointment in April; a refusal; and three decisions.

The refusal is stated in two sentences that decide the constitutional question. The superiors had asked that the February compromise be approved and made a special law. After mature reflection and consultation of experts, the cardinal declares that this is not possible, and gives the reason: “A priest who enjoys the privilege of celebrating according to the old Missal of 1962 does not lose the right likewise to use the Missal of 1970, which is officially in force in the Latin Church. No superior below the Supreme Pontiff can prevent a priest from following the general law promulgated by the supreme legislator, that is, from celebrating in the reformed rite of Pope Paul VI.” And then the crucial qualification: “A limitation of the exercise of this right can be freely decided by a priest, but it can never become the general rule in an institute. Nor can it be imposed on seminarians, or be a reason for refusing them ordination.”

Three decisions follow.

1. **Term limits.** The constitutions, approved *ad experimentum*, leave open the number of terms a superior general may serve. It seems reasonable to limit this to two terms of six years, twelve years at most, in harmony with the majority of other institutes. “The competent authority of the Holy See hereby limits the term of office of the Superior General of the Priestly Fraternity of Saint Peter to two consecutive terms of six years each.” The Commission thanks Father Bisig for his twelve years.
2. **Appointment of the superior general.** Recalling that in 1991 Cardinal Innocenti, then president, had appointed Father Bisig superior general for a further three years notwithstanding a divergent chapter vote, the letter states that the conflictual situation now requires a similar intervention, given the danger that an election would be the source of still deeper divisions: “therefore I appoint as Superior General of the Fraternity of Saint Peter Father Arnaud Devillers, for a mandate of six years.” His first task will be to restore peace.
3. **The seminaries.** A new director is to be named for the international seminary at Wigratzbad, and the superior general is likewise to choose a director for the American seminary. The seminarians must find there “an exemplary spirit of the Church, carefully avoiding all extremism”; in particular “a certain spirit of rebellion against the present Church” is to be avoided and combated.

The letter closes with a personal reflection warning the chapter not to treat the ritual aspect as the centre of the whole Church or to speak of the reformed rite “as if it were of lesser value,” and with a promise that the Commission will henceforth be more present in the Fraternity’s seminaries and houses and may intervene again if necessary. It also insists, twice, that no priest will be obliged to make use of the right it has just defended.

9.3 The chapter’s answer, and its recourse

The chapter’s public declaration of 14 July 2000 does not conceal its reaction. It records the measures, states that the chapter—“which holds in the Institute the supreme authority according to the constitutions (CIC, canon 631),” a

canon that reaches a society of apostolic life through canon 734—“took cognizance of these measures with stupefaction and great disquiet,” and announces that it has decided to introduce an administrative recourse. It acknowledges the cardinal’s concern for the Fraternity’s unity, asks officially for “a peaceful separation” for those who contest the founding line, and directs the new superior general to take every measure open to him, within the juridical framework given by the cardinal, to keep the Fraternity faithful to its own specific character. It then elects the general council: Fathers Patrick du Faÿ, Jean-Marc Fournier and José Calvin-Torralbo as assistants, Fathers Bernward Deneke and John Berg as counsellors.⁴⁰

The recourse itself, lodged at the Commission on 13 July 2000 and signed by the chapter’s moderator and secretary, Fathers Jean-Marc Fournier and Sven Conrad, is available in Italian and in French. Its argument is constitutional and it is the best statement of the Fraternity’s own case ever made public:⁴¹

- The Commission received in the rescript *Quia peculiare munus* of 18 October 1988, at n. 3, the faculty to erect the Fraternity “according to the particular marks of the Motu Proprio *Ecclesia Dei* n. 6 a, and not merely according to n. 1 of the said rescript, by which the use of the Roman Missal of 1962 is granted to priests.”
- Therefore “the society did not receive an indult after its creation; it was constituted by reason of that very indult, in order to realize it communally.” All members entered freely a society founded for and by reason of the ancient rite, and thereby accepted, at least implicitly, to limit the use of their right to celebrate according to the Missal of common use.
- The dissensions arose not from personal quarrels but from a difference of option about that proper characteristic; introducing such a diversity among the members on a point so essential to their common spirituality “will fatally entail the feared disintegration, whoever the superior chosen.”
- On term limits: constitution n. 19 does not leave the question open—it provides that the number of terms is not limited, deliberately so drafted by the founders in August 1988 and accepted by the Commission in October. A change would be accepted respectfully but cannot be retroactive.
- On the appointment: the 1991 precedent is distinguishable, because Cardinal Innocenti’s decision was taken before the chapter and did not remove the chapter’s right to vote.
- On the seminaries: no enquiry had been held at the American seminary, and the canonical visitation of Wigratzbad had underlined the seriousness and devotion of the teaching body.
- On the fifth point, the chapter accepts the Roman reading if “value” means validity or legitimacy—“it is evident that we adhere to it fully”—but asks the Commission to state the sense intended, since to hold the older liturgy of greater value in the ordinary French sense of the word is to use the right that canon 212 §3 recognizes in every one of the faithful.

The recourse ends by proposing, in the alternative, “a separation of the society into two institutes, close in their mission but each with its own proper characteristic, as has happened many times in the history of institutes of consecrated life.”

9.4 The decree of 12 October 2000

The Commission answered by decree, protocol 823/2000, dated 12 October 2000 and signed by Cardinal Castrillón Hoyos. It is short, it is drafted in the classical form of a rescript with *attento quod* clauses, and it decides the recourse point by point.⁴²

It **rejects** points 1 to 3, giving reasons:

- on term limits: the Commission had already asked for the change, following a recommendation of the Congregation for Religious concerning canon 624 §§ 1–2, and the provisional text had been clearly marked as requiring change in that sense before it could be approved by the Holy See;
- on the removal of the chapter’s electoral right “for this occasion”: it was motivated by a crisis recognized by all and by the contested composition of the chapter, which failed to “represent the whole institute” or to be “a true sign of unity in charity” (canon 631 §1), and because the internal government of institutes falls to the competence of the Holy See (canon 593);

- on the person appointed: “the authority to which it belongs to erect, modify and suppress offices is competent to provide for them” (canon 148), and the objections raised against the choice of a determinate person “are not canonical.”

It **accepts** points 4 and 5: the recourse against the decision on the seminaries has become moot, the new superior having in fact had the opportunity to choose the superiors of the houses of formation; and the fifth request concerns an expression that requires proper interpretation.

9.5 What was settled, and what was not

It is easy to read 2000 as a defeat for the Fraternity, and its own chapter clearly experienced it as one. Read against the documents, something more precise happened, and the distinction has held for twenty-six years.

What Rome refused was the conversion of the Fraternity’s liturgical patrimony into a personal obligation binding each member and each seminarian against the universal law. The reason given was not that the patrimony is unimportant; it is that the general law of the Latin Church confers on every priest of that Church a faculty which no superior below the pope can remove, and that a society’s particular law may not achieve by general rule what it may not achieve by precept.

What Rome did not touch was the erection, the object stated in the erection decree, the concession of the 1962 books, or the constitutions’ statement of the institute’s own character. On the contrary, the same letter that refused the special law repeats that the “holding fast to the noble traditions in the celebration of holy worship” is “the characteristic mark” of the Fraternity’s particular field in the Church, and it insists twice that no priest will be forced to use the right it has defended.

What Rome asserted was the reach of canon 593 into internal government: the power to limit terms of office, to set aside a chapter’s electoral right on a particular occasion, and to appoint a superior general directly. That is not an extraordinary claim; it is what pontifical right means when the Apostolic See chooses to exercise it. The Fraternity’s own recourse conceded the principle and disputed only its application.

Act or witness: Letter of the Pontifical Commission *Ecclesia Dei* to the general chapter, 29 June 2000, Prot. N. 748/2000, and decree 823/2000 of 12 October 2000 (German and French texts on partisan archives; the German letter also cited in the peer-reviewed canonical literature).

What it establishes: That in 2000 the Holy See refused to make the exclusive use of the 1962 books a special law of the Fraternity, on the ground that the universal law confers a right no superior below the pope may remove; limited the superior general to two consecutive six-year terms; appointed Father Arnaud Devillers superior general directly, setting aside the chapter’s election on that occasion; required new rectors for both seminaries; rejected the chapter’s recourse on those three heads and accepted it on two; and did all of this without altering the Fraternity’s erection, its stated object, or its liturgical grant.

Limit: Neither act was published by the Holy See; both are known through partisan reproductions, the letter corroborated by its citation in a peer-reviewed canonical article and by the Fraternity’s own contemporaneous documents. The decree of 12 October 2000 is corroborated by nothing but the archive that publishes it. No claim in this account rests on that decree alone.

10 2003: Definitive Constitutions, and What Article 8 Says

10.1 The approval

On 29 June 2003 the Pontifical Commission *Ecclesia Dei* definitively approved and confirmed the constitutions of the Priestly Fraternity of Saint Peter. The approving rescript, protocol 108/2003, is printed in the Fraternity’s own *Vademecum*; the canonical literature quotes its Latin. It records that the Commission acts at the request of the superior general, Father Arnaud Devillers, in virtue of faculties granted it by John Paul II; that the text approved is the text “amended by the General Chapter of this Institute held in the year 2000 and proposed for the definitive approval of the Holy See”; that the three years of prolonged experimentation have elapsed; and that in printing the constitutions mention is to be made of the approval granted by the Apostolic See.⁴³

Two things in that record deserve notice. The text definitively approved in 2003 is the text the chapter of 2000 amended—the chapter that had just been deprived of its election and had lodged a recourse. And the intervening sequence is not public: the constitutions were approved *ad experimentum* for three years in October 1988, reviewed in detail by the Holy See in 1999, revised by the chapter of 2000, and definitively approved in 2003, but the instruments that prolonged the experimental approval across the intervening twelve years were not located for this account and are not described here.⁴⁴

10.2 The published excerpt

What the Fraternity publishes is not the constitutions but an excerpt: Part I, “Nature, spirit and aim of the Fraternity,” articles 1 to 15, in an English rendering of a French original. Nothing beyond article 15 is public, which means that the articles on government, on incorporation, on formation, on the general chapter and on the relations with diocesan bishops—the articles that would answer half the questions this account has to leave open—cannot be examined here.⁴⁵

Article 1 states the canonical figure in the words of canon 731 § 1: the Fraternity is “a clerical society of Apostolic Life of Pontifical Right whose members, according to the terms of the law, pursue the proper apostolic aim of the society, and, by leading a communal life according to a specific form, strives towards the perfection of charity by the observance of the Constitution.”

Article 6 states the ecclesial bond and cites two councils in one sentence: founded “in the spirit of the apostolic letter *Motu proprio Ecclesia Dei Adflicta*,” the Fraternity “professes its fidelity to the Roman Pontiff, who, according to the words of the First Vatican Council (*Pastor aeternus*), is the ‘successor of Blessed Peter, Prince of the Apostles, Vicar of Christ, head of the whole Church, the Father and Doctor of all Christians’ (see Vatican Council II, *Lumen Gentium*, n. 22). ‘Each one of its members is held to obey the Supreme Pontiff as his highest superior’ (Can. 590, § 2).”

Article 7 gives the object: “the sanctification of priests through the exercise of the priesthood, and in particular, to turn the life of the priest toward that which is essentially his *raison d’être*, the Holy Sacrifice of the Mass.”

And article 8 gives the particular aim, in the sentence that has carried the whole weight of every liturgical controversy since:

The particular aim of the Fraternity of Saint Peter is to achieve this objective through the faithful observance of the “liturgical and disciplinary traditions” according to the dispositions of the *Motu proprio Ecclesia Dei* of July 2, 1988, which is at the origin of its foundation.

10.3 Reading article 8 exactly

Three features of that sentence repay attention.

It says “faithful observance,” not “exclusive use.” The word “exclusive” does not appear. It appears in the 1999 circular of the superior general, who speaks of a preferential option to maintain the exclusive use of the older liturgy in the Fraternity’s ministry; and it appears in the canonical literature, where the 2000 recourse’s “specific element” is glossed as “the exclusive celebration of the liturgy according to the books of the *editio typica* of 1962.” It does not appear in the recourse’s own words, and it does not appear in the article that is supposed to be its source.⁴⁶ That is not a quibble. In 2000 the Holy See refused to make exclusivity a norm of the institute, and in 2003 it definitively approved a constitutional text that does not assert it.

It incorporates Ecclesia Dei by reference. The traditions to be faithfully observed are those “according to the dispositions of the *Motu proprio Ecclesia Dei*.” A constitution that defines its own liturgical patrimony by reference to a papal act is exposed to whatever happens to that act—a point that became acute in 2021, when *Traditionis custodes* abrogated “previous norms, instructions, permissions, and customs” not conforming to it, and again when the Commission that *Ecclesia Dei* instituted was itself decommissioned.

It states an aim, not a permission. The permission to use the 1962 books is in the erection decree and in the decree of 10 September 1988; article 8 states what the Fraternity is for. The distinction is the Fraternity’s own best argument and its own greatest exposure: an aim approved by the Apostolic See is part of the institute’s patrimony under canon 578 and enjoys the just autonomy of canon 586, but an aim cannot by itself supply a faculty that the liturgical law has withdrawn.

10.4 The rest of Part I

The remaining published articles fill in what a reader needs to make sense of later disputes. The Sacrifice of the Mass is “at the heart of the spirituality and the apostolate” (art. 2). The Fraternity is under the protection of the Blessed Virgin (art. 4) and the patronage of Saint Peter, “in order to express their gratitude, filial love, and loyalty to the Supreme Pontiff” (art. 5). It devotes itself to “all the works of priestly formation,” with philosophical and theological studies “founded on the principles and the method of Saint Thomas Aquinas” (art. 10); formation follows the *ratio studiorum* promulgated by the Holy See, with a directory specifying the seminary curriculum in conformity with the law (art. 11). Parochial ministry “is a work to which the Fraternity devotes itself if a bishop requests of it such services,” to be the object of agreements with diocesan bishops “in order to permit the Fraternity to exercise its apostolate according to its proper charisma” (art. 13). And article 15 provides for vocations of auxiliaries in conformity with canon 738 §2.

That last citation is worth a sentence. Canon 738 §2 is the canon that subjects members of a society of apostolic life to the diocesan bishop in public worship, the care of souls and the works of the apostolate. The Fraternity’s own fundamental code cites it, and article 13 makes parochial ministry depend on a bishop’s request and a written agreement. Whatever “pontifical right” means in this institute’s self-description, it has never meant, in its own constitutions, a claim to work in a diocese without its bishop.

Act or witness: Constitutions of the Priestly Fraternity of Saint Peter, definitively approved 29 June 2003 (Prot. N. 108/2003); published excerpt of Part I, articles 1–15.

What it establishes: That the Fraternity’s fundamental code defines it as a clerical society of apostolic life of pontifical right; professes fidelity to the Roman Pontiff with canon 590 §2; gives as its object the sanctification of priests through the priesthood and the Mass; gives as its particular aim the faithful observance of the liturgical and disciplinary traditions according to the dispositions of *Ecclesia Dei*; grounds its studies in Saint Thomas; and makes its parochial ministry depend on a bishop’s request and an agreement.

Limit: Only fifteen articles are public, in a translation published by the institute. The articles on government, incorporation, formation and the chapter are not public, and this account cannot check the reading of any of them, including the article 19 invoked in the 2000 recourse.

11 2007–2019: A Wider Law, and the End of the Commission

11.1 *Summorum Pontificum* and what it changed for a body that already had the books

On 7 July 2007 Benedict XVI issued *Summorum Pontificum*. Its central provision, art. 1, states that “the Roman Missal promulgated by Pope Paul VI is the ordinary expression of the *lex orandi* . . . of the Catholic Church of the Latin rite,” that “the Roman Missal promulgated by Saint Pius V and revised by Blessed John XXIII is nonetheless to be considered an extraordinary expression of the same *lex orandi* of the Church and duly honoured for its venerable and ancient usage,” and that these two expressions “will in no way lead to a division in the Church’s *lex credendi* . . . ; for they are two usages of the one Roman rite.” Art. 2 permits any Catholic priest of the Latin rite to use either Missal in Masses celebrated without a congregation, on any day except the Easter Triduum, “no permission from the Apostolic See or from his own Ordinary” being needed.

Art. 3 is the article addressed to bodies like the Fraternity: “If communities of Institutes of Consecrated Life and Societies of Apostolic Life, whether of pontifical or diocesan right, wish to celebrate the conventual or community Mass in their own oratories according to the 1962 edition of the Roman Missal, they are permitted to do so. If an individual community or an entire Institute or Society wishes to have such celebrations frequently, habitually or permanently, the matter is to be decided by the Major Superiors according to the norm of law and their particular laws and statutes.”⁴⁷

For the Fraternity of Saint Peter, *Summorum Pontificum* changed little juridically and a great deal practically. Juridically, the Fraternity already held the four books by a grant of 1988 that *Summorum Pontificum* neither enlarged nor restricted; what art. 3 added was a general norm assigning to major superiors the decision about frequent, habitual or permanent community use—which is close to the power the Holy See had refused the Fraternity’s own superiors in 2000, now conceded by universal law to the superiors of every institute and society. Practically, the *motu proprio*

removed the argument that had done the Fraternity most damage. Once the Holy See taught that the older and newer books are “two usages of the one Roman rite,” the supposition that habitual use of the older constituted a half-detached ecclesial position lost its footing—and with it, so did the underlying premise of the 1999 responses, which had reasoned from the older Missal being an indult standing against a general law. The Fraternity itself later dated its self-description by that act, and its own liturgical directory of 2021 speaks of the “Extraordinary Form of the Roman Rite” in *Summorum Pontificum*’s vocabulary.⁴⁸

The instruction *Universae Ecclesiae* of 30 April 2011, issued by the Commission *Ecclesia Dei*, applied the *motu proprio*; the Fraternity is not named in it, and this account has not analysed it.⁴⁹

11.2 The visitation of 2014

The Fraternity records, in a communiqué of 2014, that “the last ordinary apostolic visit of the Fraternity was undertaken in 2014 by the *Ecclesia Dei* Commission.” No decree of appointment, mandate, report or communiqué of that visitation was located for this account, and nothing is asserted about it beyond the Fraternity’s own statement that it occurred.⁵⁰

11.3 17 January 2019: the Commission decommissioned

The single most important act of this period for the Fraternity’s constitutional position is not liturgical at all. On 17 January 2019 Francis issued an apostolic letter given *motu proprio* “on the Pontifical Commission *Ecclesia Dei*.” Its narrative part rehearses the Commission’s thirty years; its dispositive part is three sentences:

1. “The Pontifical Commission *Ecclesia Dei*, instituted on 2 July 1988 with the *Motu Proprio Ecclesia Dei Adflicta*, is decommissioned.”
2. “The tasks of the Commission in question are assigned entirely to the Congregation for the Doctrine of the Faith, within which will be established a special Section committed to continue the work of supervision, promotion and protection conducted thus far by the decommissioned Pontifical Commission *Ecclesia Dei*.”
3. “The financial report of the Pontifical Commission returns to the ordinary accounting of the aforementioned Congregation.”⁵¹

The reasoning given matters as much as the disposition. The letter states that the conditions which led John Paul II to institute the Commission have changed; that “the Institutes and Religious Communities which customarily celebrate in the extraordinary form have today found proper stability of number and of life”; and that the questions the Commission addressed “are of a predominantly doctrinal order.” It records that the Feria IV of the Congregation for the Doctrine of the Faith of 15 November 2017 asked that dialogue with the Society of Saint Pius X be conducted directly by that Congregation, and that the pope approved the request on 24 November 2017.

11.4 The citation that settles the constitutional question

The letter’s second footnote is, for this history, the decisive sentence in the file. Explaining that the Commission “was able to exercise its own authority and competence in the name of the Holy See over these societies and associations, until otherwise provided,” it cites: “*Rescriptum ex Audientia Sanctissimi*, 18 Oct. 1988, AAS, LXXXII (1990), 5 (3 Maii 1990), 533–534, 6.”⁵²

That is the Holy See, in 1919, identifying by volume, fascicle, page and number the exact clause under which it was acting. The clause it invokes is faculty 6: the exercise of the authority of the Holy See over these societies, *donec aliter provideatur*. Not faculty 3 a, the erection. Not faculty 3 b, the seminary. Not faculty 1, the Missal. The 2019 act disposes of the supervisor, and it says so by citing the only faculty in the 1988 rescript that had been made provisional.

There is no need for this account to argue that the erection survived the Commission that made it. The act that ended the Commission argues it, by the number it cites.

Act or witness: Francis, apostolic letter given motu proprio on the Pontifical Commission *Ecclesia Dei*, 17 January 2019.

What it establishes: That the Commission was decommissioned; that its tasks passed entire to the Congregation for the Doctrine of the Faith through a special section; that the stated grounds included the stability of the institutes celebrating in the extraordinary form and the predominantly doctrinal character of the remaining questions; and that the Holy See identified its title to act as n. 6 of the rescript of 18 October 1988, *Acta Apostolicae Sedis* 82 (1990) 533–534.

Limit: An act about a curial organ. It names no institute, alters no erection, withdraws no liturgical faculty, and says nothing about the 1962 books.

Document	Witness consulted	Evidentiary reach
<i>Summorum Pontificum</i> , 7 July 2007	Holy See English text; <i>Acta Apostolicae Sedis</i> 99 (2007) 777–781	The two-usages doctrine and the general regime of the 1962 Missal. Confers nothing on the Fraternity, which already held the books.
<i>Universae Ecclesiae</i> , 30 April 2011	Holy See English text; <i>Acta Apostolicae Sedis</i> 103 (2011) 413–420	Cited for existence and locus only; not analysed.
Apostolic visitation of 2014	Fraternity communiqué of 2024 only	That the Fraternity says one occurred. No Roman act located.
Motu proprio of 17 January 2019	Holy See English text	Decommission of the Commission; transfer of its tasks to the doctrinal congregation; express citation of faculty 6 of the 1988 rescript.

12 2021: *Traditionis custodes* and the Problem of Article 8

12.1 The act

On 16 July 2021 Francis issued the apostolic letter given motu proprio *Traditionis custodes*, promulgated by publication in *L'Osservatore Romano* and entering immediately into force. Four of its eight articles bear directly on the Fraternity of Saint Peter, and the fourth of those bears on it fatally unless something else intervenes.⁵³

Art. 1: “The liturgical books promulgated by Saint Paul VI and Saint John Paul II, in conformity with the decrees of Vatican Council II, are the unique expression of the *lex orandi* of the Roman Rite.” The change of one adjective—*unica* for *Summorum Pontificum*’s ordinary-and-extraordinary—undoes the two-usages doctrine on which the Fraternity’s public self-description had rested since 2007.

Art. 2: it belongs to the diocesan bishop to regulate the liturgical celebrations of his diocese, and “it is his exclusive competence to authorize the use of the 1962 Roman Missal in his diocese, according to the guidelines of the Apostolic See.”

Art. 6: “Institutes of consecrated life and Societies of apostolic life, erected by the Pontifical Commission *Ecclesia Dei*, fall under the competence of the Congregation for Institutes of Consecrated Life and Societies for Apostolic Life.”

Art. 8: “Previous norms, instructions, permissions, and customs that do not conform to the provisions of the present Motu Proprio are abrogated.”

12.2 Two very different articles

Article 6 is the third act in the sequence that began in 1988. Faculty 6 of *Quia peculiare munus* had reserved the exercise of the Holy See’s authority over the erected societies to the Commission *donec aliter provideatur*; the motu proprio of 2019 moved that exercise to the Congregation for the Doctrine of the Faith; and *Traditionis custodes* art. 6 moves the institutes and societies themselves to the dicastery for consecrated life. Two years and six months separate the two transfers. Neither act mentions any institute by name; both act on the class defined by the erecting organ.

Article 8 is a different kind of provision entirely, and this account does not pretend that its application to the Fraternity is obvious. Read at its widest, it abrogates the concession of the 1962 books made by the decree of 10 September 1988 and repeated in the decree of erection, since those are “previous permissions” and they do not conform to a *motu proprio* whose art. 2 gives the diocesan bishop exclusive competence to authorize the 1962 Missal. Read more narrowly, an erection decree is a constitutive act rather than a norm, instruction, permission or custom, and what it constitutes—an institute whose stated object includes the observance of certain traditions—is not the kind of thing art. 8 abrogates. The Fraternity’s own communiqué of 20 July 2021 does not argue either way; it says something else.

12.3 The Fraternity’s answer, 20 July 2021

Four days after the *motu proprio* the Fraternity issued an official communiqué from Fribourg. Its argument is not canonical but characterological, and its tone is worth recording exactly, because it is the only public statement the institute has ever made about a papal act that touched its reason for existing.

It says the Fraternity “has received Pope Francis’ *Motu Proprio Traditionis Custodes* with surprise.” It recalls that the Fraternity was “founded and canonically approved according to the *Motu Proprio Ecclesia Dei Adflicta*” and “has always professed its adherence to the entire Magisterium of the Church and its fidelity to the Roman Pontiff and the successors of the Apostles, exercising its ministry under the responsibility of the diocesan bishops.” It states that the Fraternity “is deeply saddened by the reasons given for limiting the use of the Missal of Pope St. John XXIII, which is at the center of its charism,” and—the sentence that carries the weight—“The Fraternity in no way recognizes itself in the criticisms made.” It asks how one can fail to notice the fruits of the apostolates attached to that Missal and the youth of the communities attached to it. And it closes by reaffirming “our unwavering fidelity to the successor of Peter on the one hand, and on the other, our desire to remain faithful to our Constitutions and charism, continuing to serve the faithful as we have done since our foundation,” hoping “to be able to count on the understanding of the bishops, whose authority we have always respected.”⁵⁴

Two features are worth drawing out. The communiqué locates the Fraternity’s defence in its constitutions—“our Constitutions and charism”—and not in the 1988 liturgical concession; that is the choice of the stronger ground, since a constitution definitively approved by the Apostolic See is protected by the just autonomy of canon 586 as applied by canon 732, whereas a permission is exactly what art. 8 abrogates. And it announces no change of practice, asks for no clarification in terms, and lodges no recourse. It waits.

12.4 The *Responsa ad dubia* of 4 December 2021

On 4 December 2021 the Congregation for Divine Worship and the Discipline of the Sacraments published responses to eleven questions on the application of *Traditionis custodes*, addressed to the presidents of the conferences of bishops, with the pope’s assent given in the audience of 18 November 2021. Two of them matter here.

The first concerns places: a diocesan bishop may ask the Congregation for a dispensation from art. 3 §2 to allow celebration in a parish church, but only if it is established that no other church, oratory or chapel can be used, “the assessment of this impossibility” being made “with the utmost care”; the celebration is not to appear in the parish Mass schedule and is to be withdrawn when another venue becomes available.⁵⁵

The second concerns books: asked whether the sacraments may be celebrated with the pre-conciliar *Rituale Romanum* and *Pontificale Romanum*, the answer is “Negative,” and the explanation is that “the diocesan Bishop is authorised to grant permission to use only the *Rituale Romanum* (last *editio typica* 1952) and not the *Pontificale Romanum* which predate the liturgical reform,” and may grant even that only to canonically erected personal parishes celebrating with the 1962 Missal.

Set that beside the decree of 10 September 1988, which conceded to the Fraternity the Missal, the Ritual, the *Pontifical* and the Breviary, and the shape of the coming difficulty is plain. The *Responsa* do not name the Fraternity, and they are framed throughout as answers about what a *diocesan bishop* may permit. They therefore do not, on their face, decide anything about a faculty granted to a society of apostolic life by the Apostolic See. But they establish what the general law now allows a bishop to allow, and a great deal of the Fraternity’s practical life happens in dioceses.

12.5 Art. 6 in operation

One consequence of art. 6 was immediate and administrative and is recorded by the Fraternity itself. Writing in September 2024 it observed that “the Dicastery for Institutes of Consecrated Life and Societies of Apostolic Life has been in charge of the FSSP and other former *Ecclesia Dei* institutes for the past three years,” dating its own change of supervisor to 2021 and to no other cause.⁵⁶

Act or witness: *Traditionis custodes*, 16 July 2021, arts. 1, 2, 6 and 8; *Responsa ad dubia*, 4 December 2021.

What it establishes: That the reformed books became the unique expression of the *lex orandi* of the Roman Rite; that authorizing the 1962 Missal in a diocese became the exclusive competence of its bishop under Apostolic See guidelines; that institutes and societies erected by the Commission *Ecclesia Dei* passed to the dicastery for consecrated life; that previous non-conforming norms, instructions, permissions and customs were abrogated; and that a diocesan bishop may permit the 1952 Ritual only to personal parishes and may not permit the pre-conciliar Pontifical at all.

Limit: Neither act names the Fraternity of Saint Peter or any other institute. The *Responsa* concern the powers of diocesan bishops. Whether art. 8 reaches a faculty granted directly by the Apostolic See to a society of apostolic life is a question these texts do not answer, and this account does not answer it either.

13 11 February 2022: The Decree, Read Word by Word

13.1 The audience of 4 February

The Fraternity’s account of what produced the decree is given in its communiqué of 21 February 2022. On Friday 4 February 2022 two of its members—Father Benoît Paul-Joseph, superior of the district of France, and Father Vincent Ribeton, rector of the seminary at Wigratzbad—were received in private audience by Francis for nearly an hour. In the Fraternity’s telling the pope, hearing of the origins of 1988, said that the founders’ gesture “should be ‘preserved, protected and encouraged’”; and “the Pope made it clear that institutes such as the Fraternity of St. Peter are not affected by the general provisions of the Motu Proprio *Traditionis Custodes*, since the use of the ancient liturgical books was at the origin of their existence and is provided for in their constitutions.” The Holy Father “subsequently sent a decree signed by him and dated February 11.”⁵⁷

That report should be read with care, because the decree does not say what the report says the pope said. The report states a principle—institutes of this kind are not affected by the general provisions of *Traditionis custodes*—which would resolve the whole question of art. 8. The decree states no such principle. It grants a faculty.

13.2 The Latin

The decree is short enough to set out in full, and the Latin matters because the differences between it and the English rendering the Fraternity publishes are not trivial.

Sanctus Pater Franciscus, omnibus et singulis sodalibus Instituti vitae consecratae “Fraternitas Sancti Petri” nuncupati, die 18 iulii 1988 erecti et a Sancta Sede pontificii iuris declarati, facultatem concedit celebrandi sacrificium Missae, sacramentorum necnon alios sacros ritus, sicut et persolvendi Officium divinum, iuxta editiones typicas librorum liturgicorum, scilicet Missalis, Ritualis, Pontificalis et Breviarii, anno 1962 vigentium.

Qua facultate uti poterunt in ecclesiis vel oratoriis propriis, alibi vero nonnisi de consensu Ordinarii loci, excepta Missae privatae celebratione.

Quibus rite servatis, Sanctus Pater etiam suadet ut sedulo cogitetur, quantum fieri potest, de statutis in litteris apostolicis motu proprio datis Traditionis Custodes.

*Datum Romae, Sancti Petri, die XI mensis Februarii, in memoria Beatae Mariae Virginis de Lourdes, anno MMXXII, Pontificatus Nostri nono. Franciscus*⁵⁸

The Fraternity’s English renders this as: the Holy Father “grants to each and every member of the Society of Apostolic Life ‘Fraternity of Saint Peter’, founded on July 18, 1988 and declared of ‘Pontifical Right’ by the Holy See, the

faculty to celebrate the sacrifice of the Mass, and to carry out the sacraments and other sacred rites, as well as to fulfill the Divine Office, according to the typical editions of the liturgical books, namely the Missal, the Ritual, the Pontifical and the Roman Breviary, in force in the year 1962”; they may use this faculty “in their own churches or oratories; otherwise it may only be used with the consent of the Ordinary of the place, except for the celebration of private Masses”; and “Without prejudice to what has been said above, the Holy Father suggests that, as far as possible, the provisions of the *motu proprio Traditionis Custodes* be taken into account as well.”

13.3 Six observations

One: the decree is the decree of 10 September 1988, re-enacted by the pope himself. Compare the two operative sentences. The 1988 decree: *facultatem concedit Missae sacrificium celebrandi, ritus sacramentorum aliosque sacros ritus peragendi necnon Officium Divinum persolvendi secundum editiones typicas librorum liturgicorum anno 1962 vigentium, scilicet Missale, Rituale, Pontificale, et Breviarium Romanum. Qua facultate uti poterunt in ecclesiis vel oratoriis propriis; alibi vero nonnisi de consensu Ordinarii loci, excepta Missae privatae celebratione.* The 2022 decree repeats the second sentence word for word and the first with only the changes required by the new grantor and the new grantees. Whatever else was happening in February 2022, the Holy See was not improvising: it was reissuing a thirty-four-year-old concession over a papal signature.

Two: the grantees changed, and the change is a widening in one direction and a narrowing in another. The 1988 decree granted the faculty to the Fraternity as a body (“concedes to that which is called the Fraternity of St. Peter”), and the erection decree extended the use of the books to members and to guests and ministers in the Fraternity’s churches. The 2022 decree grants it *omnibus et singulis sodalibus*, to each and every member. That is a personal grant to every member wherever he is—and it says nothing at all about guests, visiting priests, or priests who minister in the Fraternity’s churches without belonging to it.

Three: the decree calls the Fraternity an institute of consecrated life, and it gets its name wrong. *Instituti vitae consecratae “Fraternitas Sancti Petri” nuncupati:* the Fraternity is a society of apostolic life, not an institute of consecrated life, and its name is *Fraternitas Sacerdotalis Sancti Petri*. The Fraternity’s own English rendering silently corrects the first error, writing “the Society of Apostolic Life ‘Fraternity of Saint Peter’.” Neither error affects the validity of a grant whose beneficiary is unmistakably identified by its foundation date; both are worth recording, because a document that misdescribes the canonical figure of its beneficiary is not the product of a careful dicasterial process, and because the same slip had appeared in the Commission’s letter of 22 July 1988.

Four: the decree contains no reference to Traditionis custodes art. 8, and does not derogate from it in terms. It does not say that the *motu proprio* does not bind the Fraternity. It does not say that the 1988 concessions survive. It grants afresh—which is, in practice, the most economical way of dealing with an abrogation, since what is granted anew needs no defence against what abrogated the old grant. But the technique leaves everything that was not re-granted unprotected.

Five: the clause about Traditionis custodes is hortatory, and the verb is the whole point. *Suadet:* he advises, urges, counsels. Not *praecipit*, not *mandat*, not *statuit*. And what is advised is not compliance but that thought be given—*ut sedulo cogitetur*—and even that only *quantum fieri potest*, as far as can be done. A clause of that construction imposes no obligation enforceable by anyone, and it is preceded by *quibus rite servatis*, the foregoing having been duly observed: the grant is not conditioned on the advice.

Six: the decree has no term, and no promulgation. It states no expiry and no review. It was not published in *Acta Apostolicae Sedis* and has not been located in any Holy See publication. Absence of a term is not a guarantee of perpetuity—a faculty granted by the supreme legislator can be revoked by him—and absence of promulgation does not invalidate an act addressed to determinate persons. But between them the two absences mean that the Fraternity’s principal liturgical title at this account’s cutoff is a document whose only public witness is the beneficiary.

13.4 The audience of 29 February 2024

Two years later the Fraternity reports a further audience. On 29 February 2024 Francis received the superior general, Father Andrzej Komorowski, accompanied by Father Benoît Paul-Joseph and Father Vincent Ribeton. In the Fraternity’s account the meeting was “an opportunity for them to express their deep gratitude to the Holy Father for the decree of February 11, 2022, by which the Pope confirmed the liturgical specificity of the Fraternity of St. Peter, but also to share with him the difficulties encountered in its application.” The pope, it says, “was very understanding

and invited the Fraternity of St. Peter to continue to build up ecclesial communion ever more fully through its own proper charism.”⁵⁹

“Difficulties encountered in its application” is the Fraternity’s own phrase and it is the closest thing to a public admission that the decree of 2022 has not settled the matter on the ground. The account does not say what the difficulties are; neither does any document reached here. The obvious candidates are the ones the *Responsa* of 2021 created: a bishop who reads the general law as governing what may happen in his diocese, a parish church that may not be used, a Pontifical that a bishop may not permit. But that is inference, and it is labelled as such.

Act or witness: Decree of Francis, 11 February 2022 (Latin, published by the Fraternity).

What it establishes: That the pope personally granted to each and every member of the Fraternity the faculty to celebrate Mass, the sacraments and other sacred rites and to say the Divine Office according to the typical editions of the Missal, Ritual, Pontifical and Breviary in force in 1962; in the Fraternity’s own churches and oratories by the faculty itself, elsewhere only with the local Ordinary’s consent, private Masses excepted; and that, this being duly observed, he also advises that thought be given, as far as possible, to the provisions of *Traditionis custodes*.

Limit: A papal faculty of one page, never promulgated in the official gazette and known only from the beneficiary’s publication. It grants no canonical status—the Fraternity already had one—derogates from no article of *Traditionis custodes* in terms, names no term or review, says nothing about guests or non-member ministers, and attaches its only reference to the *motu proprio* to a verb of counsel.

14 2023–2026: The Rescript, the Visitation, and a New Pontificate

14.1 The rescript of 20 February 2023

On 20 February 2023 the Holy Father, in an audience granted to Cardinal Arthur Roche, Prefect of the Dicastery for Divine Worship and the Discipline of the Sacraments, confirmed three things about the implementation of *Traditionis custodes*: that two dispensations are “reserved in a special way to the Apostolic See (cf. C.I.C. can. 87 §1)” —the use of a parish church or the erection of a personal parish for celebration with the 1962 Missal, and permission for priests ordained after the *motu proprio* to celebrate with it; that a diocesan bishop who has already granted such dispensations “is obliged to inform” the Dicastery; and that the *Responsa ad dubia* of 4 December 2021 with their explanatory notes stand confirmed. The rescript was ordered published in *L’Osservatore Romano* and subsequently in *Acta Apostolicae Sedis*.⁶⁰

The rescript does not name the Fraternity and does not purport to touch a faculty granted by the pope to a society of apostolic life. Its effect on the Fraternity is indirect and, on the record reached here, unquantified: the two reserved dispensations concern precisely the two things a flourishing traditional apostolate most often needs—a church that is a parish church, and young priests. The Fraternity’s own seminaries ordain about fourteen men a year, and every man it has ordained since 2022 is a priest “ordained after the publication” of the *motu proprio*; the question whether art. 4 of *Traditionis custodes* reaches men ordained for a society whose members hold a papal faculty by the decree of 11 February 2022 is not answered by any document reached for this account.⁶¹

14.2 The apostolic visitation opened in September 2024

On 26 September 2024 the Fraternity published a communiqué from Fribourg stating that it “has recently been informed by the Dicastery for Institutes of Consecrated Life and Societies of Apostolic Life of the opening of an apostolic visitation of the Fraternity.” It added, in terms plainly meant to reassure, that “as the Prefect of this Dicastery himself made clear to the Superior General and his assistants during a meeting in Rome, this visit does not originate in any problems of the Fraternity, but is intended to enable the Dicastery to know who we are, how we are doing and how we live, so as to provide us with any help we may need”; that the last ordinary apostolic visit was in 2014 by the Commission *Ecclesia Dei*; and that the Dicastery had been in charge of the Fraternity and other former *Ecclesia Dei* institutes for the past three years.⁶²

A statement of the Dicastery followed on 30 September 2024. This account did not locate it in the Holy See Press Office bulletin or on a Holy See site; it is reported by news agencies, which quote it as saying that the Dicastery “has called for an apostolic visitation to the Priestly Fraternity of St. Peter . . . in order to deepen the understanding of this

society of apostolic life of pontifical right and to offer the most appropriate support to its journey of following Christ,” and that the visitation takes place “in the context of the process of accompanying the Institutes of Consecrated Life and the Societies of Apostolic Life that were previously established by the Pontifical Commission Ecclesia Dei and which Pope Francis’ *motu proprio Traditionis Custodes* has placed under the jurisdiction of this dicastery.” The same reports state that the text was signed by the prefect, Cardinal João Braz de Aviz, and by the dicastery’s secretary, Sister Simona Brambilla.⁶³

If that rendering is accurate, the Dicastery gave as its ground exactly the chain this account has traced: institutes previously established by the Commission, placed under this dicastery by *Traditionis custodes*. The visitation is thus the fourth act in the sequence begun by faculty 6 of 1988—and, like the three before it, it is an act of the supervisor about its own supervision.

At the cutoff of this account no report, decree or communiqué concluding the visitation had been published by the Holy See or by the Fraternity.⁶⁴

14.3 The audience of 19 January 2026

Leo XIV received the superior general, Father John Berg, in private audience at the Vatican on Monday 19 January 2026. Father Berg was accompanied by Father Josef Bisig, a founder, former superior general and then rector of the seminary at Denton. The Fraternity’s communiqué of 20 January describes “the cordial half-hour meeting” as “an opportunity to present to the Holy Father in greater detail the foundation and history of the Fraternity, as well as the various forms of apostolate that it has been offering to the faithful for almost 38 years,” at which “the proper law and charism that guide the sanctification of its members were recalled.” The audience “also provided an opportunity to evoke any misunderstandings and obstacles that the Fraternity encounters in certain places and to answer questions from the Supreme Pontiff.” At the end the pope gave his blessing, extending it to all members.⁶⁵

The communiqué is notable for what it does not contain. It records no papal statement about the 2022 decree, none about the visitation, and none about *Traditionis custodes*. It is the most cautiously drafted of the Fraternity’s audience communiqués, and it is the only one of the three that does not report the pope saying anything.

14.4 July 2026: the second rupture, and the Fraternity’s silence

On 1 July 2026 the Society of Saint Pius X consecrated four bishops at Écône without a pontifical mandate, and on 2 July the Dicastery for the Doctrine of the Faith issued a decree declaring six named men excommunicated and an explanatory note declaring the Society’s sacred ministers schismatic. Those acts belong to the companion volume in this series and are not analysed here.⁶⁶

They are recorded here for one reason. The Fraternity of Saint Peter exists because, in 1988, a group of priests judged that consecrating bishops without a papal mandate was not a course they could follow, and said so in writing on the second day after it happened. In 2026 the same act was performed again, by the same body, and the Fraternity’s general house published nothing. Its English, French and German news feeds are silent from 16 February 2026 to the cutoff of this account.⁶⁷

Document	Witness consulted	Evidentiary reach
Rescript from the audience of 20 February 2023	Holy See English text	The two dispensations reserved to the Apostolic See, the bishops’ duty to inform, and confirmation of the 2021 <i>Responsa</i> . The Fraternity is not named.
Fraternity communiqué, 26 September 2024	fssp.org	That an apostolic visitation was opened by the dicastery for consecrated life, and the Fraternity’s account of the Prefect’s assurances.
Dicastery statement, 30 September 2024	Not located; quoted by a news agency	The stated ground of the visitation, at one remove.
Outcome of the visitation	Not published; not located	Nothing. No report, decree or communiqué concluding it was found through 25 July 2026.

Document	Witness consulted	Evidentiary reach
Fraternity communiqué, 20 January 2026	fssp.org	That Leo XIV received the superior general and a founder in private audience on 19 January 2026 and gave his blessing. No papal statement is reported.
Fraternity news feeds, 16 February to 25 July 2026	fssp.org, three languages	Bounded negative: no public communiqué of any kind, including on the consecrations of 1 July 2026.

15 Project Synthesis: What Has Actually Held the Fraternity in Being

This section is labelled. Everything in it is this account’s own judgment, drawn from the acts cited in the sections above and attributed to no witness. It is offered as a conclusion of the study, not as a finding of any authority.

Project synthesis: the judgment this study reaches

The Priestly Fraternity of Saint Peter has survived four changes in the Roman law of the liturgy because the acts of 1988 gave it two legally distinct things and made only one of them provisional. The erection of 18 October 1988 constituted a clerical society of apostolic life of pontifical right whose stated object includes the observance of the liturgical and disciplinary traditions named in *Ecclesia Dei*; the rescript *Quia peculiare munus* of the same day gave the Pontifical Commission the faculty to make that erection and, separately and in its sixth number alone, the exercise of the Holy See’s authority over such bodies *donec aliter provideatur*. Every Roman act since that has moved the Fraternity has moved the second thing—the decommission of 2019, which cites n. 6 of the rescript by volume, fascicle, page and number; *Traditionis custodes* art. 6 in 2021; the apostolic visitation opened by the receiving dicastery in 2024. None has touched the erection, the stated object, or the canonical figure. The Fraternity’s practical liturgical position, by contrast, has never rested on the erection alone but on a separately granted faculty, and that faculty has had to be granted twice: by the Commission on 10 September 1988 and by the pope in person on 11 February 2022, the second time in words that reproduce the first almost exactly. The 1999–2000 crisis marks the outer limit of what the constitution can carry: the Holy See would not allow the institute’s patrimony to become a personal obligation binding each member against the universal law, and it enforced that refusal by reaching into the internal government under canon 593—limiting terms, setting aside a chapter’s election, and appointing a superior general—while leaving the erection, the object and the liturgical concession untouched. The correct description of the Fraternity’s position at 25 July 2026 is therefore not “precarious” and not “secure” but *two-tiered*: a constitution that no located act has altered, and a faculty whose only public witness is the beneficiary’s own website and whose sole reference to the governing liturgical law is a verb of advice.

15.1 The reasons, in order

First, the 1988 rescript makes the distinction itself. Faculties 3 a) and 3 b)—erect the Fraternity, approve its constitutions, erect its seminary—carry no temporal qualification. Faculty 6—exercise the authority of the Holy See over these societies—carries one. A drafter who intended the erection to be provisional had the words to hand and used them four numbers earlier in the same document.

Second, the Holy See itself has read the rescript that way. The motu proprio of 17 January 2019 disposes of the Commission and cites, as its title, “*Rescriptum ex Audientia Sanctissimi*, 18 Oct. 1988, AAS, LXXXII (1990), 5 (3 Maii 1990), 533–534, 6.” Number 6, not number 3. The distinction this account draws is not an inference imposed on the documents; it is the distinction the Holy See used when it acted.

Third, the 2000 settlement is intelligible only on this reading. What the Commission refused in 2000 was a request to make exclusivity a *special law* of the institute. Its stated reason was that the universal law confers on every Latin priest a faculty no superior below the pope may remove, and that a limitation of its exercise “can never become the general rule in an institute.” That is a statement about the reach of particular law over persons, not a statement about the institute’s patrimony—which the same letter calls the Fraternity’s “characteristic mark.” And the Commission

enforced the refusal by exercising the very authority faculty 6 had given it, over internal government, which is precisely where canon 593 places the powers of the Apostolic See over a body of pontifical right.

Fourth, the constitutions definitively approved in 2003 track the same line. Article 8 says “faithful observance,” not exclusive use, and defines the patrimony by reference to a papal act rather than by a rule binding members. A text approved after the 2000 crisis, by the authority that caused it, says what that authority was willing to approve.

Fifth, the 2022 decree behaves like a faculty and not like a constitutional guarantee. It re-grants; it does not declare. It says nothing about *Traditionis custodes* art. 8, about guests and non-member ministers, about priests ordained after 2021, or about personal parishes. Its only reference to the governing law is *suadet . . . ut sedulo cogitetur . . . quantum fieri potest*. A document intended to place the Fraternity outside the general regime would have said so; a document intended to keep a concession alive inside it looks exactly like this one.

15.2 The strongest counterargument

The strongest case against this reading is not that the documents say something else. It is that the documents are not what is doing the work. Stated at full strength, it runs like this.

Nothing about the Fraternity’s constitutional structure explains why it still uses the 1962 books in 2026. What explains it is that three popes in succession chose not to stop it. The whole apparatus of erection, object and patrimony did not prevent the Congregation for Divine Worship in 1999 from issuing responses that would have made the institute ungovernable, or the Commission in 2000 from removing a superior general its own chapter had the right to elect. If a constitution could not protect the Fraternity’s discipline against a curial *responsum* in 1999, it is idle to suppose that it protects its liturgy against a *motu proprio* in 2021. What actually protects it is a one-page decree of 2022, unpublished in the gazette, granted after a private audience, whose operative clause is a faculty and whose only nod to the governing law is a counsel that binds nobody—in other words, an act of favour by a pope who could have decided otherwise and whose successor may. On this reading the 2024 visitation is not the routine act of a new supervisor but the mechanism by which the same discretion could run the other way: a visitation ends in a report, a report can end in a decree, and a decree that amended article 8 of the constitutions or withdrew the faculty of 2022 would leave the erection formally intact and the institute’s liturgical life gone. The two-tier account would then be true and irrelevant, because the tier that matters is the discretionary one.

That argument is serious and this account does not dismiss it. Two things can be said against it, and neither is decisive. The first is that discretion has to be exercised through instruments, and the instruments have consistently respected the distinction: three separate acts of transfer and supervision from 2019 to 2024 could have suppressed, amalgamated or reconstituted the institute and none attempted it. The second is that the 2000 intervention, the strongest exhibit for the discretionary reading, in fact stopped precisely at the constitutional line: the Commission changed the government and refused a proposed special law, and did not touch the object, the erection or the books. Discretion exercised for twenty-six years within a boundary begins to look like a boundary.

15.3 What would change this judgment

The judgment above is falsifiable, and the following findings would falsify or substantially revise it.

- **An act altering the erection or the object.** A decree of the Dicastery for Institutes of Consecrated Life and Societies of Apostolic Life amending article 8 of the constitutions, or imposing liturgical norms on the institute’s own houses, or suppressing or amalgamating the Fraternity, would show that the erection is not the stable tier and that the distinction drawn here is a distinction without a difference.
- **An express revocation or limitation of the 2022 faculty** without any accompanying change to the constitution would confirm the counterargument’s central claim—that the operative protection was always the discretionary grant—and would reduce the constitutional tier to a formality.
- **Publication of the decree of 11 February 2022 in *Acta Apostolicae Sedis*, or of an authentic interpretation of its final clause,** would settle in the other direction the question this account leaves open, especially if the *suadet* clause were restated in preceptive form or the decree were declared to derogate from *Traditionis custodes* art. 8.

- **The unpublished text of *Notitiae* 35 (1999) 307–309**, or of the Commission’s letter of 13 July 1999, or of the constitutions beyond article 15, could change the account of 1999–2000 in ways this study cannot anticipate; the reading offered here rests on French, German and Italian texts of Roman acts published by interested parties, and a divergence between those and the originals would require it to be redone.
- **A concluded apostolic visitation** whose published outcome either reaffirmed the erection and the 2022 faculty, or restructured the institute, would resolve at a stroke the question this account must leave open at its cutoff.

16 The Present Situation, Stated as the Acts State It

What follows describes the legal position created by the acts set out above, as far as possible in their own terms, as of 25 July 2026. It is not legal advice, not a canonical opinion, and not a judgment about any person. Where the acts leave a question open, this section says so and stops.

16.1 Canonical status

The Priestly Fraternity of Saint Peter is a clerical society of apostolic life of pontifical right. It was erected as such by decree of the Pontifical Commission *Ecclesia Dei* on 18 October 1988, Prot. N. 234/88, in exercise of faculty 3 a) of the papal rescript *Quia peculiare munus* of the same day, and its constitutions were definitively approved on 29 June 2003, Prot. N. 108/2003. No act located for this account has suppressed, amalgamated, reconstituted or amended that erection.

Its members take no religious vows. Its clerics are incardinated in the society itself under canon 736 §1, save as its own law provides otherwise. In matters of internal governance and discipline it is subject immediately and exclusively to the Apostolic See under canon 593 as applied by canon 732. In public worship, the care of souls and other works of the apostolate its members are subject to the diocesan bishop under canon 738 §2, with attention to canons 679–683, which the erection decree names expressly. Its houses require the previous written consent of the diocesan bishop under canon 733 §1 and carry, once erected, the rights of canon 611 which the erection decree invokes.

16.2 Supervising authority

The dicastery competent for the Fraternity is the Dicastery for Institutes of Consecrated Life and Societies of Apostolic Life. The chain is: faculty 6 of the 1988 rescript, granting the Pontifical Commission the exercise of the Holy See’s authority *donec aliter provideatur*; the motu proprio of 17 January 2019 decommissioning the Commission and assigning its tasks to the Congregation for the Doctrine of the Faith, expressly citing that faculty; and *Traditionis custodes* art. 6 of 16 July 2021, placing institutes and societies erected by the Commission under the dicastery for consecrated life. The Fraternity dates its own change of supervisor to 2021.

16.3 Liturgical position

- By the decree of Francis of 11 February 2022, each and every member holds the faculty to celebrate Mass, the sacraments and other sacred rites and to fulfil the Divine Office according to the typical editions of the Missal, Ritual, Pontifical and Roman Breviary in force in 1962.
- That faculty operates by itself in the Fraternity’s own churches and oratories; elsewhere it may be used only with the consent of the local Ordinary, private Masses excepted.
- The decree adds, the foregoing being duly observed, that the Holy Father “also advises that careful thought be given, as far as can be done,” to the provisions of *Traditionis custodes*. That clause is hortatory in its verb and is not stated as a condition of the grant.
- The general law remains *Traditionis custodes*: the reformed books are the unique expression of the *lex orandi* of the Roman Rite (art. 1); authorizing the 1962 Missal in a diocese is the exclusive competence of its bishop according to the guidelines of the Apostolic See (art. 2); the use of a parish church, the erection of a personal parish, and permission for priests ordained after 16 July 2021 are dispensations reserved in a special way to the

Apostolic See (rescript of 20 February 2023); and a diocesan bishop may permit the 1952 Ritual only to canonically erected personal parishes and may not permit the pre-conciliar Pontifical (*Responsa* of 4 December 2021).

16.4 Government and scale, as the institute reports them

The superior general is Father John Berg, elected on 9 July 2024 by the seventh ordinary general chapter for six years, in his third non-consecutive term. At 1 November 2025 the Fraternity reported 579 members, of whom 394 incardinated: 387 priests (365 incardinated, 16 incorporated *ad annum*, 3 postulants, 3 associated), 30 deacons and 162 non-deacon seminarians, with an average age of 39. Its published organization chart at the cutoff shows a North American Province, a French Province, German-speaking and Oceania districts, and two seminaries, at Wigratzbad in the diocese of Augsburg and at Denton in the diocese of Lincoln. All of these are self-reported and are recorded here as such.

16.5 What the acts do not say

- They do not say that *Traditionis custodes* does not bind the Fraternity. The proposition is reported by the Fraternity as something said in a private audience on 4 February 2022; the decree of 11 February 2022 does not state it, and no located act states it.
- They do not say whether art. 8 of *Traditionis custodes* abrogated the liturgical concessions of 10 September and 18 October 1988. The 2022 decree re-grants the substance of the first without deciding the question, and says nothing about the second's extension to guests and to non-member priests ministering in the Fraternity's churches.
- They do not resolve the relation between the 2022 faculty and art. 4 of *Traditionis custodes* on priests ordained after 16 July 2021.
- They do not state a term for the 2022 faculty, provide for its review, or promulgate it in *Acta Apostolicae Sedis*. Absence of a term is not an assurance of perpetuity.
- They do not say what the apostolic visitation opened in September 2024 has found. No report, decree or communiqué concluding it had been published by the Holy See or by the Fraternity at the cutoff.
- They do not settle whether the exclusive use of the 1962 books may be required of the Fraternity's own members. The letter of 29 June 2000 says it may not be made the general rule of an institute; the decree of 11 February 2022 grants a faculty and imposes nothing; the published constitutions require "faithful observance" and do not use the word "exclusive."

Act or witness: The acts in force at 25 July 2026: the erection decree of 18 October 1988 with the rescript *Quia peculiare munus*; the constitutions definitively approved 29 June 2003; *Traditionis custodes* of 16 July 2021 with the *Responsa* of 4 December 2021 and the rescript of 20 February 2023; and the papal decree of 11 February 2022.

What it establishes: That the Fraternity is a clerical society of apostolic life of pontifical right under the dicastery for consecrated life, whose members hold by papal faculty the use of the four 1962 books in their own churches and oratories and elsewhere with the local Ordinary's consent, within a general liturgical law that reserves several dispensations to the Apostolic See.

Limit: An apostolic visitation is open with no published outcome; the principal liturgical title has no official publication; and the relation between that title and several articles of the governing *motu proprio* is undetermined on the public record.

17 Answering the Governing Question

The question was what the acts of 1988 constituted and what has kept that constitution in being. Six answers can be given from the documents, and each cuts across something commonly said.

First: the Fraternity was constituted, not merely permitted. The distinction is not verbal. A permission is a faculty held at the pleasure of the grantor; a constitution is a juridic person with an object, a fundamental code and a place in the law. The Fraternity received both, on the same day, by two different instruments, and the two have had

different histories ever since. Accounts on either flank that treat the foundation of 1988 as an indult with a house attached are contradicted by *Quia peculiare munus* 3 a and by the erection decree it authorized.

Second: the founders did not think they were founding anything new. The act of 18 July 1988 says that the constitutions “are inspired by the approved statutes of the Priestly Society of Saint Pius X” with a reserved right of adaptation; the declaration of 2 July claims to be the *pars sanior* of that Society; and the first superior general said in 2022 that he and his confrères “only continued the Society of Saint Pius X in the Church.” The Fraternity’s own account of itself is a claim of continuity within obedience, not of a new charism.

Third: the crisis of 1999–2000 was not about the liturgy but about who may bind whom. The responses of 3 July 1999 and the letter of 29 June 2000 are addressed to a single question: whether a society whose patrimony is the older liturgy may require its members to use it and no other. Rome answered no, twice, on a ground that had nothing to do with the merits of either Missal: the universal law gives every Latin priest a faculty that no superior below the pope can take away, and particular law may not achieve by general rule what it cannot achieve by precept. It then enforced that answer by the strongest instruments available in the law of pontifical-right bodies—term limits, the setting aside of a chapter’s election, and the direct appointment of a superior general—and stopped there. It did not amend the object, alter the erection or withdraw the books.

Fourth: the Fraternity’s own law is more modest than its reputation. The published constitutions require the “faithful observance” of the liturgical and disciplinary traditions “according to the dispositions of the *Motu proprio Ecclesia Dei*”; they do not use the word “exclusive.” They cite canon 738 §2 and make parochial ministry depend on a bishop’s request and a written agreement. Whatever the practice of the institute has been, its fundamental code as approved does not claim what the polemics on both sides attribute to it.

Fifth: what has changed is the supervisor, and it has changed by the terms of the original grant. Faculty 6 of 1988 was made provisional in so many words; the transfers of 2019 and 2021, and the visitation of 2024, are the cashing of that provision. The Holy See said so itself in January 2019, by citing volume, fascicle, page and number.

Sixth: the tier that is least secure is the one that matters most in practice. At the cutoff of this account the Fraternity’s liturgical life rests on a one-page decree of 11 February 2022 that no official publication carries, that grants a faculty rather than declaring a status, that leaves whole categories of case unmentioned, and whose only reference to the governing liturgical law is a verb of counsel. That is not a criticism of the decree, which does efficiently what a faculty is for. It is a description of where the weight now sits.

What the documents do not permit is a verdict on the future. Four questions remain open at 25 July 2026 and this account closes none of them: whether art. 8 of *Traditionis custodes* reached the concessions of 1988; whether art. 4 reaches the Fraternity’s own ordinands; what the apostolic visitation opened in September 2024 will conclude; and what the decree of 11 February 2022 would be held to mean if its final clause ever had to be construed by competent authority.

Beneath those four lies a fifth question, which is not juridical at all and which the Fraternity was founded to answer in a particular way. *Ecclesia Dei* treated attachment to the older forms as a sensibility to be respected within a Church whose liturgical reform was confirmed; *Summorum Pontificum* treated it as one of two usages of one rite; *Traditionis custodes* treated the reformed books as the unique expression of the rite’s *lex orandi*. Under all three regimes the Fraternity of Saint Peter has said the same thing about itself: that it exists to keep the older liturgy inside the communion of the Roman Pontiff, and that it will not choose between the two. Whether that position is a permanent form of Catholic life or a transitional accommodation is precisely what the Holy See has never settled in terms across thirty-eight years, in either direction; a source-first history can record that it has not, and stop.

18 Notes

1. John Paul II, *motu proprio Ecclesia Dei*, 2 July 1988, n. 6 a): the new commission is to work for full ecclesial communion “iuxta Protocollum superiore die 5 mensis Maii obsignatum a Cardinali Ratzinger et ab Archiepiscopo Lefebvre” (*Acta Apostolicae Sedis* 80 [1988] 1498); Benedict XVI, *motu proprio Ecclesiae unitatem*, 2 July 2009, n. 2, quoting the same clause (*Acta Apostolicae Sedis* 101 [2009] 710). Read on 2026-07-25 in the Holy See’s English text of *Ecclesia Dei* and, for the Latin and the *Acta* pagination, as cited in the companion volume of this series.
2. Bounded negative. The Fraternity publishes an English text of the protocol under the heading “Protocol between the Holy See and the Priestly Society of St. Pius X” (fssp.org, “Other documents,” read 2026-07-25), noting that “the Archbishop

renounced the protocol before proceeding with episcopal consecrations.” A French printing is cited in the canonical literature as *La Documentation Catholique* 85 (1988) 734–736; that periodical was not reached for this account. The text used below is therefore a party-hosted English rendering with no named translator, and it is used only for what the founders themselves say they relied on.

3. Same party-hosted text, part II, nn. 1 and 6. The correspondence between this list and the papal faculties of 18 October 1988 is discussed, with the official Latin, in the section on *Quia peculiare munus* below. The correspondence is this account’s own observation and is offered as source-grounded synthesis, not as a claim that any Roman act says so.
4. “Declaration of intention by the founders,” 2 July 1988, English text published by the Priestly Fraternity of Saint Peter (fssp.org, “Documents / Foundation”), marked “[Original: German],” read 2026-07-25. Party-hosted translation; the translator is not named. The German original is quoted in full by Dawid Pietras, “The Rightful Autonomy of the Priestly Fraternity of Saint Peter (can. 586, 732 CIC/83) (Part I),” *Prawo Kanoniczne* 69/1 (2026) 165–186, at 172 n. 9, from the Fraternity’s German-language site; the English and the German agree in substance at every point quoted here.
5. Josef Bisig, “Les origines de la Fraternité Saint-Pierre: le témoignage d’un fondateur,” *Tu es Petrus* 33 (2022) 36–43, reproduced on *claves.org* (a publication of the Fraternity’s French district), read 2026-07-25. A founder’s recollection published thirty-four years after the events, in an organ of the institute; it is used here for the founders’ self-understanding and for nothing else. The number “twelve confrères” is his and reflects the signatories of 18 July, not of 2 July.
6. Bounded negative and a deliberate refusal. The figure “twelve priests and twenty seminarians” is common in encyclopaedic and journalistic accounts; no document reached for this account states it. Several of the untitled signatories—Deneke and Lugmayer among them—appear later in the Fraternity’s records as priests, which establishes what they became, not what they were on 2 July 1988.
7. *Ecclesia Dei*, 2 July 1988, nn. 6 a) and 6 c), quoted from the Holy See’s own English version (https://www.vatican.va/content/john-paul-ii/en/motu_proprio/documents/hf_jp-ii_motu-proprio_02071988_ecclesia-dei.html), read 2026-07-25; Latin in *Acta Apostolicae Sedis* 80 (1988) 1495–1498. The exact bytes of the English page read on that date match the artifact registered in this repository’s source library.
8. Josef Bisig, “Les origines de la Fraternité Saint-Pierre,” *Tu es Petrus* 33 (2022) 36–43, on *claves.org*, read 2026-07-25: “C’est à vous de fonder. Nous, nous approuverons ce que vous nous soumettez.” A founder’s recollection published in an organ of his own institute in 2022 about conversations of July 1988. It is reported here as recollection. No Roman act, minute or communiqué of those meetings was located, and the account below never uses this source to establish the content of any Roman act.
9. “Act of Foundation,” 18 July 1988, English text published by the Priestly Fraternity of Saint Peter (fssp.org, “Documents / Foundation”), marked “[Original: French],” read 2026-07-25. The French original is quoted in full by Pietras, art. cit., 172–173 n. 10, who cites it from Philippe Levillain, *Rome n’est plus dans Rome: Mgr Lefebvre et son église* (Paris: Perrin, 2010), 416; that monograph was not reached for this account. The English and the French agree at every point quoted here. Party-hosted translation with no named translator.
10. Same document and its two published footnotes. The Fraternity’s editorial notes are themselves evidence of how it counts its founders, and they explain the arithmetic: eleven priest-signatories plus Coiffet gives the twelve priests that Rome acknowledged four days later, while Gervais’s departure reduces the founding body again before erection.
11. “Declaration of the Ecclesia Dei Commission,” 22 July 1988, English text published by the Fraternity (fssp.org, “Documents / Foundation”), marked “[Original: German],” read 2026-07-25; the German original is quoted by Pietras, art. cit., 173 n. 11. The Fraternity’s own index dates this document 22 July; the Society of Saint Pius X’s French archive publishes what appears to be the same act under the date 23 July 1988. This account follows the date on the text the Fraternity publishes and records the discrepancy.
12. Pontifical Commission *Ecclesia Dei*, *Rescriptum ex audientia Ss.mi quo Cardinali Praesidi Pontificiae Commissionis “Ecclesia Dei” speciales tribuuntur facultates, foras datur*, incipit *Quia peculiare munus*, *Acta Apostolicae Sedis* 82 (1990) 533–534, read in the Holy See’s own scanned *Acta* volume on 2026-07-25. The rescript is signed by Augustinus card. Mayer, president, and bears the Commission’s archive number 283/88.
13. Same rescript, closing formula and signature. The date of the audience, 18 October 1988, is the same date as the erection decree discussed in the next section; the two acts are of the same day.
14. Project synthesis. The comparison rests on the official Latin of the rescript (*Acta Apostolicae Sedis* 82 [1990] 533) and on the party-hosted English text of the protocol described in the previous section. No Roman act states that the rescript was drafted from the protocol. What can be said is that the remedies the protocol had contemplated for the Society of Saint Pius X were, five months after that agreement failed, conferred on the Commission for use in favour of those who had left it. The inference is this account’s, and is labelled as such.
15. Pontifical Commission *Ecclesia Dei*, *Decretum*, 10 September 1988, English text published by the Fraternity (fssp.org, “Documents / Foundation”), marked “[Original: Latin],” read 2026-07-25, signed by Augustin cardinal Mayer, president, and

Camille Perl, secretary. The Latin is quoted by Pietras, art. cit., 173–174 n. 12, who cites it *pro manuscripto*: “facultatem concedit Missae sacrificium celebrandi, ritus sacramentorum aliosque sacros ritus peragendi necnon Officium Divinum persolvendi secundum editiones typicas librorum liturgicorum anno 1962 vigentium, scilicet Missale, Rituale, Pontificale, et Breviarium Romanum. Qua facultate uti poterunt in ecclesiis vel oratoriis propriis; alibi vero nonnisi de consensu Ordinarii loci, excepta Missae privatae celebratione.” Bounded negative: this decree was not located in *Acta Apostolicae Sedis*, on vatican.va, or in any other official publication.

16. Bounded negative. No declaration of pontifical right earlier than 18 October 1988 was located in *Acta Apostolicae Sedis*, on vatican.va, or among the Fraternity’s published founding documents. The Latin of the September decree quoted by Pietras carries the same anticipation as the English text, so the difficulty is not an artefact of translation.
17. Pontifical Commission *Ecclesia Dei, Decretum erectionis “Fraternitatis Sacerdotalis Sancti Petri”*, 18 October 1988, Prot. N. 234/88, English text published by the Fraternity (fssp.org, “Documents / Foundation”), marked “[Original: Latin],” read 2026-07-25. The Latin is printed in *Archiv für katholisches Kirchenrecht* 157 (1988) 467–468, as cited by Pietras, art. cit., 174–176 nn. 14, 16–18, who quotes the operative clauses; that periodical itself was not reached for this account, and the Latin used here is the Latin as quoted by Pietras. Bounded negative: the decree is not in *Acta Apostolicae Sedis* and was not located on vatican.va.
18. *Codex Iuris Canonici* (1983), cann. 731–746, read in the Latin text of Book II in the Holy See’s web presentation (https://www.vatican.va/archive/cod-iuris-canonici/latin/documents/cic_liberII_1a.html) on 2026-07-25; the exact bytes read match the artifact registered in this repository’s source library. The English rendering used in this section follows the Holy See’s own English page for cann. 731–746 (https://www.vatican.va/archive/cod-iuris-canonici/en/documents/cic_lib2-cann731-746_en.html), read the same day. No project translation is offered.
19. “The Seminary of Wigratzbad (Germany)” (fssp.org, “Our seminaries”), read 2026-07-25. A self-published institutional history, undated on the page and stale in one respect noted below. Bishop Stimpfle’s own act was not located; the rescript of 18 October 1988 establishes that the bishop’s prior consent was required, not that it was given in August, and this account carries the August date on the Fraternity’s authority alone.
20. Same page. The date of the blessing—2 December 2000—is worth holding: it falls five months after the Roman intervention in the Fraternity’s government described below, and the prelate who blessed the new building is the prelate who had made that intervention.
21. “The Seminary of Denton (USA)” (fssp.org, “Our seminaries”), read 2026-07-25, from which the quoted words of Father Devillers and Bishop Bruskewitz are taken. Self-published institutional history; the diocesan instruments of Scranton and Lincoln were not located. Note that the page is stale—it describes the building’s history “nearly a decade ago” and names a rector who has since been succeeded—which is a reason to use it for dated events and not for present facts. A widely circulated agency report of January 2026 places the Denton seminary in Texas; it is in Nebraska.
22. Pietras, art. cit., 176, reporting the rescript with its protocol number. Bounded negative: the rescript itself was not located, and no text of it is published by the Fraternity or by the Holy See. The fact is reported here on the authority of a peer-reviewed canonical article whose author is a priest of the Fraternity; the qualification is stated because the reader should know that the only witness to this act is an interested one, even if a scholarly one.
23. “Statistics update” for 1 November 2017, 2019, 2021, 2023, 2024 and 2025, and the standing “Figures” page (fssp.org), all read 2026-07-25. Self-reported; categories are the Fraternity’s own. The 2025 page also reports priestly ordinations over twelve years, from a low of 11 (2021 and 2025) to a high of 19 (2017), averaging 14 a year, and gives the lay Confraternity of Saint Peter 8,776 members. The “deceased members” figure is cumulative since foundation, not annual.
24. Pietras, art. cit., 166 n. 1, citing the 2024 *Ordo administrativus*. That internal directory was not reached for this account, and the figures are reported here as the article reports them.
25. “Election of the Superior General of the Fraternity” (11 July 2024) and “Closing of the General Chapter and nominations” (18 July 2024), both fssp.org, read 2026-07-25; “A new Superior General for the Fraternity” (10 July 2018) for the Komorowski election, which that communiqué describes as making him “the 4th Superior General.” The 1988–2000 and 2000–2006 terms are established by the documents discussed in the sections on 1999 and 2000 below.
26. “Appointments and new structures within the FSSP” (fssp.org, 27 May 2021), read 2026-07-25, which also records the erection of the Southern Cross Region (Australia and New Zealand) into a district from 1 July 2021; Pietras, art. cit., 166 n. 1; and “The Seminary of Denton (USA)” (fssp.org) for the description of Father Devillers as North American district superior in 1998. Neither writer supplies an erecting instrument, and none was located.
27. “Organization chart” (fssp.org, “Presentation”), read 2026-07-25. Bounded negative: no instrument erecting a French Province was located, and the chart is the only witness to its existence reached for this account. The chart is a current-state page with no date on its face, which is a further reason to treat it as a snapshot of 25 July 2026 and nothing more.
28. John Paul II, address for the tenth anniversary of the motu proprio *Ecclesia Dei adflicta*, 26 October 1998, *L’Osservatore Romano* (Italian edition), n. 248, p. 8, as quoted in French by Pietras, art. cit., 178 n. 22. Bounded negative: the address

was not located on vatican.va—the Holy See’s French index of John Paul II’s speeches for October 1998 has no such item at the address this account tried—and it is not in *Acta Apostolicae Sedis*. The French is used here as the canonical article quotes it; the English above paraphrases that French closely and is not offered as a translation of an official English version, of which none was found.

29. “Conference of Cardinal Ratzinger on the 10th anniversary of the Motu proprio *Ecclesia Dei*,” 24 October 1998, English text published by the Fraternity (fssp.org, “Other documents”), marked “[Original: French],” read 2026-07-25. Party-hosted translation with no named translator; the French original was not located in an independent witness. The conference is used here for the positions it takes, which both sides of the 1999 dispute cited, and not as evidence of any Roman act.
30. Bounded negative, checked 2026-07-25. The 1999 letter has an official printed locus that this account could not reach: Congregatio de Cultu Divino et Disciplina Sacramentorum, *Responsa officialia* beginning *Post liturgicam*, 3 July 1999, *Notitiae* 35 (1999) 307–309, as cited by Pietras, art. cit., 181 and 179 n. 23. *Notitiae* is not distributed free online and the 1999 fascicle was not obtained. The 2000 letter and decree have no printed locus known to this account.
31. “Recours de 16 prêtres de la FSSP,” dated Rome, 29 June 1999, addressed to Cardinal Angelo Felici, French text published in the archive of the Association A.M.D.G. (amdg.asso.fr, “Situation de la Fraternité Saint Pierre 1999–2001”), read 2026-07-25. A partisan lay archive publishing what it presents as the signatories’ text; no official publication exists, and this account uses it for the signatories’ own positions and requests only. The archive names the signatories with their apostolates.
32. “Protocole 1411,” Congrégation pour le Culte Divin, “Réponse officielle,” 3 July 1999, French text in the A.M.D.G. archive (amdg.asso.fr), read 2026-07-25. Unofficial French rendering; the Latin original was not obtained. Its official printed locus is *Notitiae* 35 (1999) 307–309 (see the note above), which this account could not reach; the substance summarized here is corroborated in outline by Fr Bisig’s own circular of 30 August 1999 and by the German text of the letter of 29 June 2000, both discussed below. The paraphrase is this account’s and no project translation is offered.
33. “Situation à la Fraternité Saint Pierre 1999–2001” and “Données sur la crise au sein de la Fraternité Saint Pierre,” A.M.D.G. archive (amdg.asso.fr), read 2026-07-25, a contemporary partisan narrative. Its central claims about July 1999 are independently corroborated by the superior general’s own circular of 30 August 1999, next cited, which reports the cancellation of the chapter session and the substitute plenary meeting; the restriction on his powers is corroborated indirectly by the Fraternity’s own communiqué of 12 February 2000, which states that “the Superior general recovers the full faculties which the law of the Church grants him.” Neither the Commission’s letter of 13 July 1999 nor its text was located.
34. “Lettre de l’abbé Bisig aux membres de la Fraternité Saint-Pierre—30 août 1999,” French text published by the District of France of the Society of Saint Pius X (laportelatine.org), read 2026-07-25. A hostile party publishing an internal circular of the institute it opposes; no original was located and no translator is named. The quotations above render the published French closely and are given as paraphrase. The letter is used for the superior general’s own account of the two Roman measures and for his stated legal objection.
35. Same A.M.D.G. archive, “Données sur la crise,” which summarizes the supplication under its date and states the three grounds. The text of the supplication itself was not located. The document does not say to which organ it was addressed.
36. “Éclaircissements fournis par Mgr Perl,” French translation of an English text, A.M.D.G. archive (amdg.asso.fr), read 2026-07-25, which describes the text as read by Monsignor Camille Perl at a meeting of Una Voce International in Rome in November 1999 and reproduces it from a sheet distributed there. A translation of a transcription on a partisan archive: the weakest evidence used anywhere in this account, and it is used only for the one point that is corroborated by an official act—the Commission’s claim to exercise the full authority of the Holy See over the Fraternity, which is exactly what faculty 6 of *Quia peculiare munus* confers.
37. “Communiqué de presse du Supérieur de la Fraternité Saint Pierre,” Rome, 12 February 2000, French text in the A.M.D.G. archive (amdg.asso.fr), read 2026-07-25. The archive’s own summary page dates the assembly 7–12 February and the communiqué 13 February; the communiqué it reproduces says 8–11 February and is dated 12 February. The discrepancy is preserved and not resolved. The place is given as Rome in the communiqué and as Rocca di Papa in the archive’s narrative and in the Roman letter of 29 June 2000; Rocca di Papa is a town in the Alban hills outside Rome, so the two are compatible.
38. “Situation à la Fraternité Saint Pierre,” A.M.D.G. archive, for the summary of the accord’s content; the request for approval as a special law is established by the letter of 29 June 2000, quoted below, which describes and refuses it. The text of the Rocca di Papa accord itself was not located. Whether the “renunciation” was framed as a corporate act or as a collection of individual acts is exactly the point on which the record is silent, and this account does not supply it.
39. Pontifical Commission *Ecclesia Dei*, letter to the general chapter of the Priestly Fraternity of Saint Peter, 29 June 2000, Prot. N. 748/2000. German original with Italian and French renderings at unavox.it (doc. 18), read 2026-07-25; the same page and the same German text are cited by Pietras, art. cit., 179 n. 23. A French rendering, expressly labelled “traduction non-officielle,” is in the A.M.D.G. archive. The Italian page’s own headnote says the letter was published on the German

site of the Society of Saint Pius X on 10 July 2000 and translated from German by a French traditionalist bulletin on 12 July; its title-line gives 26 June and its text 29 June, and the recourse lodged on 13 July 2000 cites 29 June, which is followed here. Bounded negative: no Holy See publication of this letter was located. The quotations below render the German and are given as paraphrase; no project translation is offered.

40. “Déclaration du Chapitre Général de la Fraternité Saint Pierre (réuni à Wigratzbad du 4 au 14 juillet 2000),” French text in the A.M.D.G. archive (amdg.asso.fr), read 2026-07-25. Party text on a partisan archive; no official publication was located. The list of elected assistants and counsellors is the archive’s.
41. “Ricorso del Capitolo Generale della Fraternità San Pietro,” July 2000, Italian text at unavox.it (doc. 30), read 2026-07-25, and a French text in the A.M.D.G. archive; Pietras, art. cit., 179 n. 24, cites the Italian at the same site and quotes it. The two renderings agree in substance. The recourse’s own date is given by the Commission’s answering decree as 13 July 2000.
42. Pontificia Commissio *Ecclesia Dei*, “Décret” 823/2000, 12 October 2000, French text in the A.M.D.G. archive (amdg.asso.fr), read 2026-07-25, expressly answering the recourse “déposé au siège de la Commission Pontificale Ecclesia Dei le 13 juillet 2000” against five decisions of letter N. 748/2000 of 29 June 2000. Bounded negative: no official publication of this decree was located, and it is not cited in the canonical article used elsewhere in this section. It is therefore the least corroborated of the three Roman acts of 1999–2000 used here, and nothing in this account’s conclusions depends on it alone.
43. Pontificia Commissio *Ecclesia Dei*, *Rescriptum approbationis Constitutionum “Fraternitatis Sacerdotalis Sancti Petri”*, 29 June 2003, Prot. N. 108/2003, printed in the Fraternity’s *Vademecum* (Fribourg, 2021), 33, and quoted in Latin by Pietras, art. cit., 176–177 n. 20. Bounded negative: the *Vademecum* was not reached for this account, the rescript was not located in *Acta Apostolicae Sedis* or on vatican.va, and the complete text of the constitutions has never been published. The same note records that the constitutions were modified by the general chapters of 2012 and 2018 with the approval of the Apostolic See under Prot. N. 153/2009.
44. Bounded negative. The Fraternity’s own presentation of the 2003 excerpt states that “until that date the constitutions had been approved on an experimental basis. They were reviewed in detail by the Holy See in 1999 and by the Fraternity’s General Chapter (the supreme governing body of the institute) in 2000.” No instrument of prolongation between 1991 and 2003 was located.
45. “Excerpt of the Constitutions of the Priestly Fraternity of Saint Peter,” 29 June 2003, English text published by the Fraternity (fssp.org, “Documents / Foundation”), marked “[Original: French],” read 2026-07-25. Bounded negative: articles 16 and following are not published, and the numbering of article 19, cited in the recourse of July 2000 as providing that the number of terms of a superior general is not limited, cannot be checked against the definitive text. The excerpt itself is the definitive text as approved in 2003, not the 1988 text.
46. The circular of 30 August 1999 is cited above from the French text published by the District of France of the Society of Saint Pius X; the wording is rendered, not quoted. The gloss “the exclusive celebration of the liturgy according to the books of the *editio typica* of 1962” is Pietras’s, art. cit., 179, not the recourse’s; the recourse itself speaks of the *elemento specifico* for which the society was founded and of “the celebration of the ancient and venerable form of the Roman liturgy.” The distinction between the document’s word and its scholarly gloss is preserved here deliberately.
47. Benedict XVI, *motu proprio Summorum Pontificum*, 7 July 2007, arts. 1–3, quoted from the Holy See’s own English version (https://www.vatican.va/content/benedict-xvi/en/motu_proprio/documents/hf_ben-xvi_motu-proprio_20070707_summorum-pontificum.html), read 2026-07-25; the exact bytes read on that date match the artifact registered in this repository’s source library. Latin in *Acta Apostolicae Sedis* 99 (2007) 777–781.
48. Pietras, art. cit., 178, citing the Fraternity’s General Directory for the Sacred Liturgy in the *Vademecum* (Fribourg, 2021), nn. 2–5, 19, 24. That directory was not reached for this account; the point is reported as the article reports it. The inference in the sentence before is this account’s own.
49. Congregation for the Doctrine of the Faith—Pontifical Commission *Ecclesia Dei*, instruction *Universae Ecclesiae*, 30 April 2011, *Acta Apostolicae Sedis* 103 (2011) 413–420; read on 2026-07-25 in the English text on the Holy See’s site (https://www.vatican.va/roman_curia/pontifical_commissions/ecclsdei/documents/rc_com_ecclsdei_doc_20110430_istr-universae-ecclesiae_en.html). Cited for its existence and locus; not analysed. The 2011 *Acta* volume is not available in the Holy See’s whole-volume PDF archive, and the locus is taken from the citation in the canonical literature.
50. “Apostolic visitation of the Fraternity” (fssp.org, communiqué of 26 September 2024, published 27 September), read 2026-07-25. Bounded negative: no act of the Pontifical Commission concerning a 2014 visitation was located in *Acta Apostolicae Sedis*, on vatican.va, or in the Holy See Press Office bulletin. The word “ordinary” is the Fraternity’s.
51. Francis, apostolic letter given *motu proprio* “On the Pontifical Commission Ecclesia Dei,” 17 January 2019, quoted from the Holy See’s English text (https://www.vatican.va/content/francesco/en/motu_proprio/documents/papa-francesco-motu-proprio-20190117_ecclesia-dei.html), read 2026-07-25. The spelling “decommissioned” is the Holy See’s own in that version. The *motu proprio* orders its promulgation by publication in *L’Osservatore Romano* of 19 January 2019, immediate entry into force, and subsequent insertion in *Acta Apostolicae Sedis*.

52. Same *motu proprio*, note [2]. The citation is exact: volume 82, fascicle 5 of 3 May 1990, pages 533–534, number 6—that is, the sixth of the faculties granted in *Quia peculiare munus*, the one qualified *donec aliter provideatur*. Note [1] cites *Ecclesia Dei* 6 a and note [4] cites *Ecclesiae unitatem* 5.
53. Francis, apostolic letter given *motu proprio* *Traditionis custodes*, 16 July 2021, quoted from the Holy See’s own English version (https://www.vatican.va/content/francesco/en/motu_proprio/documents/20210716-motu-proprio-traditionis-custodes.html), read 2026-07-25; the exact bytes read on that date match the artifact registered in this repository’s source library. Latin in *Acta Apostolicae Sedis* 113 (2021) 793–796 as cited in the canonical literature; the 2021 *Acta* volume is not available in the Holy See’s whole-volume PDF archive and the locus was not independently checked.
54. “Official communiqué following the publication of *Traditionis Custodes*” (fssp.org), Fribourg, 20 July 2021, read 2026-07-25. Party statement; quotations are from the Fraternity’s own English text. Note its citation of its own constitutions n. 8 and of Benedict XVI’s address to the Roman Curia of 22 December 2005 on “the hermeneutic of reform in the continuity of the Church.”
55. Congregation for Divine Worship and the Discipline of the Sacraments, *Responsa ad dubia* on certain provisions of *Traditionis custodes*, 4 December 2021, quoted from the Holy See’s own English text (https://www.vatican.va/roman_curia/congregations/ccdds/documents/rc_con_ccdds_doc_20211204_responsa-ad-dubia-traditionis-custodes_en.html), read 2026-07-25; the exact bytes read match the artifact registered in this repository’s source library.
56. “Apostolic visitation of the Fraternity” (fssp.org), 26 September 2024, read 2026-07-25. The Fraternity’s arithmetic—“the past three years”—places the transfer in 2021, that is, at *Traditionis custodes* art. 6 and not at the decommission of 2019, which had moved the Commission’s tasks to the doctrinal congregation.
57. “Official communiqué of the Priestly Fraternity of St. Peter” (fssp.org), Fribourg, 21 February 2022, read 2026-07-25. A party account of a private audience; the words attributed to the pope are the Fraternity’s report of what was said, and no Holy See record of the audience was located. This account reports the report and asserts nothing about what was said. The date 11 February is independently established by the decree itself.
58. Decree of Pope Francis of 11 February 2022, Latin text as published by the North American Province of the Priestly Fraternity of Saint Peter (fssp.com/decree/), read 2026-07-25; the same page carries an English rendering. The Fraternity’s international site publishes the English rendering alone, marked “[Original: Latin and Spanish].” Bounded negative: no publication of this decree by the Holy See was located—not in *Acta Apostolicae Sedis*, not on vatican.va, not in the Holy See Press Office bulletin—and the canonical literature that treats the decree cites it from the Fraternity. The English quoted below is the Fraternity’s own; no project translation of the Latin is offered.
59. “Audience with Pope Francis” (fssp.org), Fribourg, 1 March 2024, read 2026-07-25. Party account of a private audience. No Holy See record of the audience was located.
60. Dicastery for Divine Worship and the Discipline of the Sacraments, *Rescriptum ex audientia Ss.mi* of 20 February 2023, quoted from the Holy See’s own English text (https://www.vatican.va/roman_curia/congregations/ccdds/documents/rc_con_ccdds_doc_20230220_rescriptum-traditioniscustodes_en.html), read 2026-07-25; the exact bytes read match the artifact registered in this repository’s source library.
61. The ordination figures are the Fraternity’s own, from its statistics page for 1 November 2025 (eleven in 2021, fifteen in 2022, fourteen in 2023, eighteen in 2024, eleven in 2025; a twelve-year average of fourteen). The question posed is this account’s and is left open deliberately: art. 4 addresses “priests ordained after the publication of the present *Motu Proprio*, who wish to celebrate using the *Missale Romanum* of 1962,” and requires a formal request to the diocesan bishop, who is to consult the Apostolic See. The decree of 11 February 2022 grants the faculty to “each and every member,” which on its face includes members ordained after it. Nothing located resolves the relation between the two.
62. “Apostolic visitation of the Fraternity” (fssp.org), Fribourg, 26 September 2024, published 27 September, read 2026-07-25. Party statement, including its account of what the Prefect said in a private meeting.
63. Agency report of 1 October 2024 carried by the *National Catholic Register* from Catholic News Agency, “Vatican announces apostolic visit to Priestly Fraternity of St. Peter,” read 2026-07-25. Bounded negative: the Dicastery’s statement of 30 September 2024 was not located in the Holy See Press Office bulletin or elsewhere on a Holy See site, and the quotations above are therefore quotations at one remove, from a news agency’s rendering. They are used for the stated ground of the visitation, which matters to this account’s argument, and the limitation is recorded because it is real. The same report places the Denton seminary in Texas; it is in Nebraska.
64. Bounded negative, checked 2026-07-25. The Fraternity’s English, French and German news feeds each carry nothing later than 16 February 2026, and their last substantive items are the audience of January 2026 and the annual consecration novena. No item concerning the Fraternity was located in the Holy See Press Office bulletin. A non-public act, or an act communicated only to the institute, would not appear in either channel.

65. “Audience with Pope Leo XIV” (fssp.org), Fribourg, 20 January 2026, read 2026-07-25. Party account of a private audience. The photographs on the page are credited to Vatican Media; no Holy See text about the audience was located, and the Holy See Press Office bulletin was not found to carry an item on it.
66. Dicastery for the Doctrine of the Faith, *Decreto* and *Nota Esplicativa*, Prot. N. 99/2009, 2 July 2026, Holy See Press Office bulletin B0568 (<https://press.vatican.va/content/salastampa/it/bollettino/pubblico/2026/07/02/0568/01077.html> and [.../01078.html](https://press.vatican.va/content/salastampa/it/bollettino/pubblico/2026/07/02/01078.html)), read 2026-07-25; the exact bytes read match the artifacts registered in this repository’s source library. The events and their canonical analysis are the subject of TPI-01 in this series.
67. Bounded negative, checked 2026-07-25 in the Fraternity’s three language feeds at fssp.org. Silence in a published feed is not silence *tout court*: the institute may have communicated internally, through its provinces and districts, or to the Holy See. What can be said is that the general house issued no public communiqué in its ordinary channel. This account draws no inference about the reason.

A Scope, Method, and Historical Coordinates

A.1 Identity and corpus boundary

Subject: the institutional and canonical history of the Priestly Fraternity of Saint Peter (FSSP; *Fraternitas Sacerdotalis Sancti Petri*), from the declaration of its founders on 2 July 1988 to 25 July 2026, told through identified acts and documents. The account covers: the branch point of 1988 and the protocol of 5 May 1988 as the founders invoked it; the declaration of 2 July, the act of foundation of 18 July and the Commission’s answer of 22 July 1988; the papal rescript *Quia peculiare munus* of 18 October 1988; the liturgical decree of 10 September and the decree of erection of 18 October 1988; the canonical anatomy of a clerical society of apostolic life of pontifical right; the seminaries at Wigratzbad, Elmhurst and Denton and the shape of the institution; the tenth-anniversary texts of October 1998; the recourse of sixteen priests of 29 June 1999, the responses of 3 July 1999 and the Commission’s measures of 13 July 1999; the assembly of February 2000, the letter of 29 June 2000, the chapter’s declaration and recourse of July 2000 and the decree of 12 October 2000; the definitive approval of the constitutions on 29 June 2003 and the published excerpt of Part I; *Summorum Pontificum* (2007) and *Universae Ecclesiae* (2011); the decommission of the Pontifical Commission on 17 January 2019; *Traditionis custodes* (2021) with the *Responsa* of 4 December 2021 and the rescript of 20 February 2023; the papal decree of 11 February 2022; the audiences of February 2022, February 2024 and January 2026; and the apostolic visitation opened in September 2024.

Excluded: the history of the Society of Saint Pius X, which is the subject of TPI-01 in this series and is touched here only at the branch of 1988 and at the events of July 2026; the history of the Institute of Christ the King Sovereign Priest and of the other communities erected under the same faculties; a general history of the Second Vatican Council or of the postconciliar liturgical reform; a liturgical-law study of *Summorum Pontificum* or *Traditionis custodes* as such; biographies of the Fraternity’s founders, superiors or dissidents beyond what the institutional history requires; the internal constitutions beyond the published excerpt, the directories, chapter records, personnel files or finances; any independent audit of membership, houses, parishes or apostolates; any adjudication of the canonical position of the Society of Saint Pius X; any assessment of the good faith or culpability of any person; and any pastoral advice about attending a liturgy, joining the Confraternity of Saint Peter, or applying to a seminary.

A.2 Evidence classes

Class	Meaning
A	Acts printed in <i>Acta Apostolicae Sedis</i> and read in the Holy See’s own scanned volume: the rescript <i>Quia peculiare munus</i> , <i>Acta Apostolicae Sedis</i> 82 (1990) 533–534.
H	Official Holy See texts published on vatican.va or in the Holy See Press Office bulletin: <i>Ecclesia Dei</i> (1988, English); <i>Summorum Pontificum</i> (2007, English); <i>Universae Ecclesiae</i> (2011, English); the motu proprio of 17 January 2019 (English); <i>Traditionis custodes</i> (2021, English); the <i>Responsa ad dubia</i> of 4 December 2021 (English); the rescript of 20 February 2023 (English); the Dicastery for the Doctrine of the Faith’s decree and explanatory note of 2 July 2026 (Italian).
L	Canonical texts read in the Holy See’s official web presentation of the 1983 Code: Book II in Latin (cann. 586, 587, 590, 593, 611, 624, 631, 678–683, 731–746) and the English page for cann. 731–746.

Class	Meaning
P	Documents published by the Priestly Fraternity of Saint Peter on its own sites: the declaration of 2 July 1988, the act of foundation, the Commission’s letter of 22 July 1988, the decrees of 10 September and 18 October 1988, the constitutional excerpt of 29 June 2003, the papal decree of 11 February 2022 in Latin and English, the protocol of 5 May 1988, Cardinal Ratzinger’s conference of 24 October 1998, the communiqués of 2021, 2022, 2024 and 2026, the seminary histories, the organization chart and the annual statistics; and a founder’s memoir interview published in the Fraternity’s French review in 2022.
Q	Roman acts of 1999–2000 not published by the Holy See, read in French, German or Italian texts hosted by interested third parties—a French traditionalist lay association’s archive and an Italian traditionalist site—and, for the letter of 29 June 2000, corroborated by citation in a peer-reviewed canon-law article.
S	Peer-reviewed canonical scholarship: Dawid Pietras, FSSP, in <i>Prawo Kanoniczne</i> 69/1 (2026), used for Latin and German originals it quotes, for printed loci this account could not reach, and for its own analysis, always with its author’s institutional position stated.
N	Bounded negative results: acts sought and not found in a named corpus on a named date, recorded so that the search can be repeated and corrected.
J	Project synthesis, drawn from the classes above and never attributed to a witness. The block in the “Project synthesis” section is the principal instance.

A.3 Method and viewpoint rules

Every consequential claim is tied to an identified act or witness with its date. Statements of the Holy See are attributed to the organ that made them—pope, commission, congregation or dicastery—and statements of the Fraternity to the Fraternity. Interested-party sources are labelled at the point of use and are never allowed to establish a contested fact against, or in the absence of, an official act; they are used for the party’s own positions, self-description, internal events and self-reported numbers.

For the Roman acts of 1999–2000 the rule is stricter still, because those acts were not published by the Holy See and this account has read them only in unofficial renderings hosted by parties with a stake in the dispute. Where such a text is used, the language, the host and the corroboration are named. The letter of 29 June 2000 is corroborated by its citation, in the same German text and from the same host, in a peer-reviewed canonical article, and by the Fraternity’s own contemporaneous documents. The responses of 3 July 1999 are corroborated in outline by the superior general’s circular of 30 August 1999 and by the reasoning of the 2000 letter. The decree of 12 October 2000 is corroborated by nothing else, and no conclusion of this account rests on it alone.

No text in any language is translated by this project. English quotations are taken from the Holy See’s own English versions where these exist (*Ecclesia Dei*, *Summorum Pontificum*, *Universae Ecclesiae*, the motu proprio of 2019, *Traditionis custodes*, the *Responso*, the rescript of 2023) or from the Fraternity’s own English texts where the document is the Fraternity’s or is published by it. Latin, German, French and Italian acts without an official English version are paraphrased, with short phrases quoted in the original.

This account decides no canonical question that competent authority has left open. In particular it does not decide whether *Traditionis custodes* art. 8 reached the concessions of 1988, whether art. 4 reaches the Fraternity’s ordinands, what the decree of 11 February 2022 would be held to mean if construed, or what the visitation of 2024 will conclude.

A.4 Canon-law control

Statements of current law rest on the 1983 Code of Canon Law of the Latin Church, in the Holy See’s Latin web presentation, with the English pages used only as a reading aid. Book VI was integrally revised by the apostolic constitution *Pascite gregem Dei* of 23 May 2021, effective 8 December 2021; no penal canon is load-bearing in this account. The canons chiefly used are 586, 587, 590 § 2, 593, 611, 624, 631, 678–683, 731–740 and 148. Where an act of 1988 or 2000 cites a canon, the number is given as that act gives it. This module is a study aid; it is not legal advice, and independent canonical review remains outstanding.

A.5 Terminology

“Society of apostolic life” is the canonical classification; “religious order” and “congregation” are not used of the Fraternity. “Pontifical right” is never glossed as freedom from the diocesan bishop. “Faculty,” “concession,” “indult,” “privilege,” “erection,” “patrimony” and “charism” are technical and are not interchangeable; where a document uses one of them, this account uses the document’s word. “The 1962 books” names the Missal, Ritual, Pontifical and Roman Breviary in force in that year; “traditional Latin Mass” is avoided where the identity of a book or faculty matters. “Member,” “incardinated,” “incorporated *ad annum*,” “postulant,” “associated,” “deacon” and “seminarian” retain the categories of the Fraternity’s own statistics. “Visitation” denotes an information and supervision process and is never treated as a penalty or a vindication.

A.6 Material uncertainties preserved

The clerical status of eight of the fifteen signatories of 2 July 1988; the terms of the protocol of 5 May 1988, read only in a party text; the meaning of the description “of pontifical right” in the decree of 10 September 1988, five weeks before the erection; the complete text of the constitutions of 1988, of 2003 and as amended in 2012 and 2018, and the instruments prolonging the experimental approval between 1991 and 2003; the Latin original of the responses of 3 July 1999 in *Notitiae* 35 (1999) 307–309; the Commission’s letter of 13 July 1999; the text of the Rocca di Papa accord of February 2000 and whether its renunciation was corporate or individual; the date and place of the February 2000 assembly, reported differently in the Fraternity’s communiqué and in the archive that publishes it; the corroboration of the decree of 12 October 2000; the erecting instruments of the North American and French provinces and the date of the former; the rescript of 24 March 1996 on the older Pontifical, reported only in the canonical literature; the diocesan instruments receiving the seminaries at Wigratzbad, Elmhurst and Denton; the report of the 2014 visitation; the Dicastery’s statement of 30 September 2024, read only at one remove; and the outcome of the visitation opened in 2024. Each is flagged where it bears on the narrative.

A.7 Rights, currentness, and review state

Project prose is original and intended for CC BY 4.0. Official texts of the Holy See are quoted within ordinary scholarly limits with citation and remain subject to their own rights. Documents published by the Priestly Fraternity of Saint Peter are quoted briefly, with attribution, and remain its own. The article of Dawid Pietras in *Prawo Kanoniczne* 69/1 (2026) is open access under a Creative Commons Attribution–NoDerivatives 4.0 International licence; it is cited and summarized, never adapted, and its short quotations are attributed. Texts hosted on third-party traditionalist archives are cited with their host named; no such text is reproduced at length. No liturgical text, image, facsimile, photograph or logo is reproduced. Public web availability is not treated as a reuse licence.

All web sources were read on 2026-07-25, and the account states the position as of that date. This publication has received internal editorial checking only. No independent historical, canonical, theological, or rights review has been performed, and no ecclesiastical review or approval is claimed or implied. Nothing here is pastoral or legal advice.

A.8 Orientation timeline

Dates marked “(P)” rest on a document published by the Fraternity; “(Q)” on a Roman act read only in an unofficial rendering hosted by an interested party.

Date	Act or event	Witness used	Status
1988-05-05	Protocol of agreement signed by Cardinal Ratzinger and Archbishop Lefebvre	<i>Ecclesia Dei</i> 6 a) (H); text on fssp.org (P)	Existence secure; terms from a party text
1988-06-30	Consecrations at Écône without pontifical mandate	<i>Ecclesia Dei</i> 1 and 3 (H)	Secure; see TPI-01
1988-07-02	<i>Ecclesia Dei</i> ; declaration of intention of fifteen signatories	vatican.va (H); fssp.org (P)	Both secure; the signatories’ status is not

Date	Act or event	Witness used	Status
1988-07-18	Act of Foundation at the abbey of Hauterive	fssp.org (P); French quoted in <i>Prawo Kanoniczne</i> 69/1 (2026) (S)	Secure as a private act
1988-07-22	Commission declares readiness to erect under cann. 731–746	fssp.org (P); German quoted in the same article (S)	Secure; the SSPX archive dates the act 23 July
1988-08	Bishop Stimpfle of Augsburg accepts a canonical establishment at Wigratzbad	Fraternity’s seminary history (P)	Party report; no diocesan act located
1988-09-10	Commission decree conceding the four 1962 books	fssp.org (P); Latin quoted in the same article (S)	Secure; describes the body as already of pontifical right
1988-10-18	Rescript <i>Quia peculiare munus</i> : six papal faculties	<i>Acta Apostolicae Sedis</i> 82 (1990) 533–534 (A)	Secure
1988-10-18	Decree of erection, Prot. N. 234/88, ratified in papal audience	fssp.org (P); Latin in <i>Archiv für katholisches Kirchenrecht</i> 157, quoted in the same article (S)	Secure; not in the gazette
1988-11	Thirty-one seminarians begin at Wigratzbad	Fraternity’s seminary history (P)	Self-reported
1991-09-05	Cardinal Innocenti appoints Father Bisig for a further three years	Chapter recourse of July 2000 (Q)	Reported by an interested party only
1994	Bishop Timlin approves a seminary at Elmhurst, Scranton	Fraternity’s seminary history (P)	Self-reported
1996-03-24	Rescript Prot. N. 64/96 on the 1961/62 Pontifical for tonsure and ordination	<i>Prawo Kanoniczne</i> 69/1 (2026) (S)	Reported; text not located
1998-10-24	Cardinal Ratzinger’s conference for the tenth anniversary	fssp.org (P)	Party translation
1998-10-26	John Paul II’s anniversary address	<i>L’Osservatore Romano</i> , quoted in <i>Prawo Kanoniczne</i> 69/1 (2026) (S)	Not on vatican.va or in the gazette (N)
1999-06-29	Sixteen priests lodge a recourse with Cardinal Felici	A.M.D.G. archive (Q)	Party text; signatories named
1999-07-03	Responses Prot. 1411/99 of the Congregation for Divine Worship	A.M.D.G. archive, French (Q); locus <i>Notitiae</i> 35 (1999) 307–309 (S), not reached	Substance corroborated; original not read
1999-07-13	Commission cancels the chapter session and restricts the superior general	Bisig circular (Q); A.M.D.G. archive (Q)	Fact secure; text not located
1999-07-23	Bisig and de Blignières petition against publication of the responses	A.M.D.G. archive (Q)	Reported; text not located
1999-08-30	Circular of the superior general to the members	laportelatine.org, French (Q)	Party host; used for his own account
2000-02-08/11	General assembly at Rome / Rocca di Papa	Fraternity communiqué of 12 February 2000 (Q)	Dates and place reported divergently
2000-06-29	Letter Prot. N. 748/2000: no special law; term limits; Devillers appointed; new rectors	unavox.it, German (Q); cited in <i>Prawo Kanoniczne</i> 69/1 (2026) (S)	Substance secure; not published by the Holy See
2000-07-04/14	General chapter at Wigratzbad; declaration of 14 July	A.M.D.G. archive (Q)	Party text
2000-07-13	Chapter lodges an administrative recourse	unavox.it, Italian (Q); cited in the same article (S)	Secure as to the recourse’s existence and argument

Date	Act or event	Witness used	Status
2000-10-12	Decree 823/2000 rejecting points 1–3 and accepting 4–5	A.M.D.G. archive, French (Q)	Least corroborated act used here
2000-12-02	Cardinal Castrillón Hoyos blesses the new seminary at Wigratzbad	Fraternity’s seminary history (P)	Self-reported
2003-06-29	Constitutions definitively approved, Prot. N. 108/2003	fssp.org (P); Latin quoted in <i>Prawo Kanoniczne</i> 69/1 (2026) (S)	Secure; only Part I is public
2007-07-07	<i>Summorum Pontificum</i>	vatican.va (H); <i>Acta Apostolicae Sedis</i> 99 (2007) 777–781	Secure
2011-04-30	<i>Universae Ecclesiae</i>	vatican.va (H)	Cited, not analysed
2014	Ordinary apostolic visitation by the Commission	Fraternity communiqué of 2024 (P)	No Roman act located (N)
2019-01-17	Commission decommissioned; tasks to the doctrinal congregation, citing rescript n. 6	vatican.va (H)	Secure
2021-07-16	<i>Traditionis custodes</i> ; art. 6 transfers the erected societies	vatican.va (H)	Secure
2021-07-20	Fraternity’s communiqué: “surprise”; no change of practice announced	fssp.org (P)	Party statement
2021-12-04	<i>Responsa ad dubia</i> : no pre-conciliar Pontifical; Ritual only for personal parishes	vatican.va (H)	Secure; addressed to bishops
2022-02-04	Private audience of two members with Francis	Fraternity communiqué of 21 February 2022 (P)	Party account of a private meeting
2022-02-11	Papal decree granting the four 1962 books to each and every member	fssp.com, Latin and English (P)	Text secure; no official publication located (N)
2023-02-20	Rescript reserving two dispensations to the Apostolic See	vatican.va (H)	Secure; Fraternity not named
2024-02-29	Audience of the superior general with Francis; “difficulties encountered in its application”	Fraternity communiqué of 1 March 2024 (P)	Party account
2024-07-09	Father John Berg elected superior general for six years	fssp.org (P)	Self-reported
2024-09-26/30	Apostolic visitation opened by the dicastery for consecrated life	fssp.org (P); dicastery statement quoted by a news agency	Fact secure; the dicastery’s text not located (N)
2025-11-01	579 members, 387 priests, 162 non-deacon seminarians	Fraternity statistics (P)	Self-reported
2026-01-19	Leo XIV receives the superior general and a founder in private audience	Fraternity communiqué of 20 January 2026 (P)	Party account; no papal statement reported
2026-07-01/02	SSPX consecrations at Écône; DDF decree and explanatory note	Bulletin B0568 (H)	Secure; see TPI-01
2026-07-25	No published outcome of the visitation; no Fraternity communiqué since 16 February	Holy See bulletin and fssp.org feeds (N)	Bounded negative

B References

All sources were read on 2026-07-25; the exact bytes registered in this repository’s source library for the documents published by the Fraternity and for the Roman acts of 1999–2000 were re-fetched and hashed on 2026-07-26. *Acta Apostolicae Sedis* was read in the Holy See’s own scanned archive at https://www.vatican.va/archive/aas/index_sp.htm; the volume used here is <https://www.vatican.va/archive/aas/documents/AAS-82-1990-ocr.pdf>. Sources are grouped by function.

Acts printed in *Acta Apostolicae Sedis*

- Pontifical Commission *Ecclesia Dei*, *Rescriptum ex audientia Ss.mi quo Cardinali Praesidi Pontificiae Commissionis “Ecclesia Dei” speciales tribuuntur facultates, foras datur*, incipit *Quia peculiare munus*, audience of 18 October 1988, AAS 82 (1990) 533–534 (fascicle 5, 3 May 1990); Prot. N. 283/88; signed Augustinus card. Mayer, president. Read in the scanned volume.
- Gazette loci taken from the canonical literature and not independently checked in the scanned volumes for this account: *Ecclesia Dei*, AAS 80 (1988) 1495–1498; *Summorum Pontificum*, AAS 99 (2007) 777–781; *Universae Ecclesiae*, AAS 103 (2011) 413–420; *Traditionis custodes*, AAS 113 (2021) 793–796. The Holy See’s whole-volume archive does not carry the 2011 or 2021 volumes, and the 1988 and 2007 loci are established in the companion volume of this series.
- A lead not pursued: the canonical literature gives the decree *Dominus Marcellus Lefebvre* of 1 July 1988, which was never printed in the gazette, a locus in the canonical periodical *Apollinaris* 61, 550–551. That periodical was not reached, and this account asserts nothing about the decree.

Official Holy See texts on [vatican.va](https://www.vatican.va) and in the press bulletin

- John Paul II, motu proprio *Ecclesia Dei*, 2 July 1988 (English), https://www.vatican.va/content/john-paul-ii/en/motu_proprio/documents/hf_jp-ii_motu_proprio_02071988_ecclesia-dei.html.
- Benedict XVI, motu proprio *Summorum Pontificum*, 7 July 2007 (English), https://www.vatican.va/content/benedict-xvi/en/motu_proprio/documents/hf_ben-xvi_motu_proprio_20070707_summorum-pontificum.html.
- Congregation for the Doctrine of the Faith—Pontifical Commission *Ecclesia Dei*, instruction *Universae Ecclesiae*, 30 April 2011 (English), https://www.vatican.va/roman_curia/pontifical_commissions/ecclsdei/documents/rc_com_ecclsdei_doc_20110430_istr-universae-ecclesiae_en.html.
- Francis, apostolic letter given motu proprio on the Pontifical Commission *Ecclesia Dei*, 17 January 2019 (English), https://www.vatican.va/content/francesco/en/motu_proprio/documents/papa-francesco-motu-proprio-20190117_ecclesia-dei.html.
- Francis, apostolic letter given motu proprio *Traditionis custodes*, 16 July 2021 (English), https://www.vatican.va/content/francesco/en/motu_proprio/documents/20210716-motu-proprio-traditionis-custodes.html.
- Congregation for Divine Worship and the Discipline of the Sacraments, *Responsa ad dubia* on certain provisions of *Traditionis custodes*, 4 December 2021 (English), https://www.vatican.va/roman_curia/congregations/ccdds/documents/rc_con_ccdds_doc_20211204_responsa-ad-dubia-traditionis-custodes_en.html.
- Dicastery for Divine Worship and the Discipline of the Sacraments, *Rescriptum ex audientia Ss.mi*, 20 February 2023 (English), https://www.vatican.va/roman_curia/congregations/ccdds/documents/rc_con_ccdds_doc_20230220_rescriptum-traditioniscustodes_en.html.
- Dicastery for the Doctrine of the Faith, *Decreto* and *Nota Esplicativa*, Prot. N. 99/2009, 2 July 2026, Holy See Press Office bulletin B0568, <https://press.vatican.va/content/salastampa/it/bollettino/pubblico/2026/07/02/0568/01077.html> and <https://press.vatican.va/content/salastampa/it/bollettino/pubblico/2026/07/02/0568/01078.html>.

Canonical texts

- *Codex Iuris Canonici* (1983), Book II, Latin: https://www.vatican.va/archive/cod-iuris-canonici/latin/documents/cic_liberII_la.html; English page for cann. 731–746: https://www.vatican.va/archive/cod-iuris-canonici/eng/documents/cic_lib2-cann731-746_en.html. Registered in this repository’s source library as `work.catholic-church.codex-iuris-canonici-1983`.

Documents published by the Priestly Fraternity of Saint Peter (interested party)

- “Declaration of intention by the founders,” 2 July 1988, <https://www.fssp.org/en/declaration-of-intention-by-the-founders/>; “Act of Foundation,” 18 July 1988, <https://www.fssp.org/en/act-of-foundation/>;

“Declaration of the Ecclesia Dei Commission,” 22 July 1988, <https://www.fssp.org/en/declaration-of-the-ecclesia-dei-commission/>; “Decree of the Ecclesia Dei Commission concerning the liturgical books of 1962,” 10 September 1988, <https://www.fssp.org/en/decreed-of-the-ecclesia-dei-commission-on-the-liturgical-books-of-1962/>; “Decree erecting the Priestly Fraternity of Saint Peter,” 18 October 1988, <https://www.fssp.org/en/decreed-erecting-the-priestly-fraternity-of-saint-peter/>.

- “Excerpt of the Constitutions of the Priestly Fraternity of Saint Peter,” 29 June 2003, <https://www.fssp.org/en/excerpt-of-the-constitutions-of-the-priestly-fraternity-of-saint-peter/>.
- “Decree of Pope Francis confirming the use of the 1962 liturgical books,” 11 February 2022, English at <https://www.fssp.org/en/decreed-of-pope-francis-confirming-the-use-of-the-1962-liturgical-books/>, Latin with English at <https://fssp.com/decreed/>.
- “Protocol between the Holy See and the Priestly Society of St. Pius X,” 5 May 1988, <https://www.fssp.org/en/protocol-between-the-holy-see-and-the-priestly-society-of-st-pius-x/>; “Conference of Cardinal Ratzinger on the 10th anniversary of the *Motu proprio Ecclesia Dei*,” 24 October 1998, <https://www.fssp.org/en/conference-of-cardinal-ratzinger-on-the-10th-anniversary-of-the-motu-proprio-ecclesia-dei/>.
- Communiqués: “Official communiqué following the publication of *Traditionis Custodes*,” 20 July 2021, <https://www.fssp.org/en/official-communique-following-the-publication-of-the-motu-proprio-traditionis-custodes/>; “Official communiqué of the Priestly Fraternity of St. Peter,” 21 February 2022, <https://www.fssp.org/en/official-communique-of-the-priestly-fraternity-of-st-peter/>; “Audience with Pope Francis,” 1 March 2024, <https://www.fssp.org/en/audience-with-pope-francis/>; “Apostolic visitation of the Fraternity,” 27 September 2024, <https://www.fssp.org/en/apostolic-visitation-of-the-fraternity/>; “Audience with Pope Leo XIV,” 20 January 2026, <https://www.fssp.org/en/audience-with-pope-leo-xiv/>.
- Government and scale: “Election of the Superior General of the Fraternity,” 11 July 2024, and “Closing of the General Chapter and nominations,” 18 July 2024; “A new Superior General for the Fraternity,” 10 July 2018; “Appointments and new structures within the FSSP,” 27 May 2021; the “Organization chart” and “Figures” pages, <https://www.fssp.org/en/presentation-2/organization-chart/> and <https://www.fssp.org/en/presentation-2/figures/>; and the annual “Statistics update” pages for 1 November 2017, 2019, 2021, 2023, 2024 and 2025.
- Seminaries: “The Seminary of Wigratzbad (Germany)” and “The Seminary of Denton (USA),” <https://www.fssp.org/en/our-seminaries/>.
- Josef Bisig, “Les origines de la Fraternité Saint-Pierre: le témoignage d’un fondateur,” *Tu es Petrus* 33 (2022) 36–43, reproduced at <https://claves.org/les-origines-de-la-fraternite-saint-pierre/>.

Roman acts of 1999–2000 read in unofficial renderings hosted by interested third parties

- Archive of the Association A.M.D.G., “Situation à la Fraternité Saint Pierre 1999–2001,” http://www.amdg.asso.fr/archives/situation_fssp.htm, with its constituent documents: “Données sur la crise” (http://www.amdg.asso.fr/archives/donnees_crise.htm); the recourse of sixteen priests of 29 June 1999 (http://www.amdg.asso.fr/archives/recours_16.htm); the responses Prot. 1411/99 of 3 July 1999 (http://www.amdg.asso.fr/archives/protocole_1411.htm); the “Éclaircissements” attributed to Monsignor Perl, November 1999 (<http://www.amdg.asso.fr/archives/eclaircissements.htm>); the Fraternity’s communiqué of 12 February 2000 (http://www.amdg.asso.fr/archives/com_fssp_1302.htm); the letter of Cardinal Castrillón Hoyos of 29 June 2000 in unofficial French (http://www.amdg.asso.fr/archives/lettre_cardinal_castrillon.htm); the chapter declaration of 14 July 2000 (http://www.amdg.asso.fr/archives/com_chapitre_1407.htm); the chapter’s recourse (http://www.amdg.asso.fr/archives/recours_chap.htm); and the decree 823/2000 of 12 October 2000 (http://www.amdg.asso.fr/archives/rep_recours_chap.htm).
- Una Voce Italia archive: the letter of 29 June 2000 in German with Italian and French renderings, <http://www.unavox.it/doc18.htm>; the chapter’s recourse in Italian, <http://www.unavox.it/doc30.htm>.
- District of France of the Society of Saint Pius X, “Lettre de l’abbé Bisig aux membres de la Fraternité Saint-Pierre—30 août 1999,” <https://laportelatine.org/formation/crise-eglise/rapports-rome-fsspx/lettre-de-labbe-bisig-aux-membres-de-la-fraternite-saint-pierre-30-aout-1999>.

Canonical scholarship

- Dawid Pietras, FSSP, “The Rightful Autonomy of the Priestly Fraternity of Saint Peter (can. 586, 732 CIC/83) (Part I),” *Prawo Kanoniczne* 69/1 (2026) 165–186, DOI 10.21697/pk.2026.69.1.07, open access under CC BY-ND 4.0, <https://czasopisma.uksw.edu.pl/pk/article/view/15902>. The author is a priest of the Fraternity and an official of the ecclesiastical court of Gorzów Wielkopolski; his institutional position is stated wherever he is used. A second part of the study, on the period of *Summorum Pontificum* and *Traditionis custodes*, is announced in the article and had not appeared when this account was written.

Reporting used at one remove

- “Vatican announces apostolic visit to Priestly Fraternity of St. Peter,” Catholic News Agency, carried by the *National Catholic Register*, 1 October 2024, <https://www.ncregister.com/cna/vatican-announces-apostolic-visit-to-priestly-fraternity-of-st-peter>, used only for its quotations of the dicastery’s statement of 30 September 2024, which was not located in any Holy See channel.

Consequential negative results

- No text of the protocol of 5 May 1988, of the decree of 10 September 1988, of the decree of erection of 18 October 1988, of the constitutions of 1988 or 2003 beyond the published excerpt, of the rescript of 24 March 1996, of the responses of 3 July 1999, of the Commission’s letter of 13 July 1999, of the letter of 29 June 2000, of the decree of 12 October 2000, or of the papal decree of 11 February 2022 was located in *Acta Apostolicae Sedis*, on vatican.va, or in the Holy See Press Office bulletin.
- *Notitiae* 35 (1999) 307–309, the printed locus of the 1999 responses, and *Archiv für katholisches Kirchenrecht* 157, the printed locus of the erection decree’s Latin, were not obtained; both are used only as cited by the canonical literature, which quotes the Latin of the second.
- John Paul II’s address of 26 October 1998 was not located on vatican.va or in *Acta Apostolicae Sedis*; it is used only as quoted in French by the canonical literature from *L’Osservatore Romano*.
- No report, decree or communiqué concluding the apostolic visitation opened in September 2024 was located through 25 July 2026, in either the Holy See’s channels or the Fraternity’s.
- The Fraternity’s English, French and German news feeds carry no item later than 16 February 2026, and therefore no communiqué on the episcopal consecrations of 1 July 2026 or on the acts of 2 July 2026.
- Not searched, and recorded as limits: the diocesan archives of Augsburg, Scranton and Lincoln; the archives of the Dicastery for Institutes of Consecrated Life and Societies of Apostolic Life; the Fraternity’s *Vademecum*, *Ordo administrativus* and internal directories; *Notitiae*, *Communicationes*, *Apollinaris* and *Archiv für katholisches Kirchenrecht* in print; *La Documentation Catholique* 85 (1988); Philippe Levillain, *Rome n’est plus dans Rome* (2010); and the French, German and Italian monographic literature on the *Ecclesia Dei* communities.

C Generation Metadata

Last revised (UTC): 2026-07-26T00:41:32Z

Model: claude-opus-5[1m]; **unexposed:** reasoning-effort and sampling configuration

Agent/runtime: Anthropic Claude Code agent (research, drafting, typesetting, review); Claude Code CLI 2.1.219; **unexposed:** server revision

Reuse and rights. To the extent Triptych holds the rights, project-created content and design are licensed under CC BY 4.0. Scripture, liturgical or official texts, received prayers or hymns, quotations, fonts, and other third-party material retain their own status; public-domain material remains public domain. Identify changes. Attribution implies neither Triptych nor ecclesiastical approval. See LICENSE and THIRD_PARTY.md in the source.